Out. No. 20260619/1

To the Deputy Prosecutor General
Oleksiy Khomenko
01011, Kyiv, 13/15 Riznytska St.
Defense Counsel: Advocate Vladyslav Miftakhutdinov
01011, Kyiv, 22 Rybalska St., Entrance 13
Tel.: 097 327 02 69
E-mail: v.miftakhutdinov@vbpartners.ua
In the interests of: Oleksandr Vyacheslavovych Boguslayev
Criminal proceeding
No. 22017000000000272

COMPLAINT

against the prosecutor's ruling on refusal to satisfy the Motion on determination of investigative jurisdiction of the Criminal proceeding

I, advocate Vladyslav Miftakhutdinov, provide legal assistance to Oleksandr Vyacheslavovych Boguslayev (hereinafter – the Client; powers – Annexes 1, 2).

The Main Investigation Directorate of the Security Service of Ukraine (hereinafter – the MID SSU) is conducting a pre-trial investigation within Criminal Proceeding No. 22017000000000272 (hereinafter – the Criminal Proceeding, Annex 3).

Prosecutors of the Office of the Prosecutor General exercise procedural guidance within the Criminal Proceeding. Prosecutor Safaryan O.E. has been appointed as the head of the group (Annex 4).

On 29.05.2026, the defense applied to Safaryan O.E. with a Motion on determination of investigative jurisdiction of the criminal proceeding to the National Anti-Corruption Bureau of Ukraine (hereinafter – the NABU) (Annex 5).

The motion was substantiated by the fact that another suspect in the Criminal Proceeding – Boguslayev V.O. is suspected of committing crimes provided for by Arts. 191, 209 of the CC of Ukraine. According to the investigation's version, he allegedly committed the specified crimes during the period he held the status of a People's Deputy of Ukraine and with the use of such status.

On 03.06.2026, prosecutor Safaryan O.E. issued a Ruling on refusal to satisfy such Motion (hereinafter – the Ruling, Annex 6). The refusal was substantiated by the following:

(1) The crimes provided for by Art. 191 and Art. 209 of the CC of Ukraine were detected during the investigation of other criminal offenses falling under the investigative jurisdiction of investigators of the security bodies;

(2) On 11.07.2019, the Prosecutor General adopted a decision on instructing the MID SSU to conduct pre-trial investigation of the Criminal Proceeding due to its inefficiency;

(3) Pre-trial investigation in the Criminal Proceeding is also conducted on the facts of commission of other criminal offenses;

(4) Boguslayev V.O., at the time of the notification of suspicion, no longer held the status of a People's Deputy of Ukraine;

(5) The completion by Boguslayev V.O. of the commission of the crimes incriminated against him, provided for by Arts. 191, 209 of the CC of Ukraine, occurred after the disposal of JSC "Motor Sich" from state ownership;

(6) On 30.09.2025, the acting Prosecutor General resolved the dispute on investigative jurisdiction of the Criminal Proceeding and determined it behind the MID SSU.

However, we believe that the Ruling of prosecutor Safaryan O.E. is unlawful and unjustified and is subject to revocation in view of the following:

(1) The Criminal Proceeding, pursuant to the provisions of the CPC, belongs to the exclusive subject-matter investigative jurisdiction of the NABU;

(2) Detectives of the NABU, pursuant to the CPC of Ukraine, for the purpose of investigating crimes belonging to the investigative jurisdiction of the NABU, may investigate crimes assigned to the investigative jurisdiction of investigators of other bodies. Such decision is taken by the Director of the NABU in agreement with the prosecutor of the SAPO;

(3) The CPC of Ukraine does not link the investigative jurisdiction of the NABU with a person having the active status of a People's Deputy of Ukraine at the moment of completion of the crime.

(4) The fact of disposal of JSC "Motor Sich" from state ownership in no way affects the determination of investigative jurisdiction of the Criminal Proceeding to the NABU.

In addition, the Notification of suspicion to Boguslayev V.O. (p. 12 of the Notification of suspicion to Boguslayev V.O.) indicates the amount of damages caused to the state as a result of the alleged commission by him of the crime provided for by Art. 191 of the CC of Ukraine.

(5) The instruction to conduct pre-trial investigation to the MID SSU in 2019 and the resolution of the dispute on investigative jurisdiction do not constitute grounds for refusal to determine investigative jurisdiction to the NABU.

The foregoing is substantiated by the following:

1. Regarding the exclusive investigative jurisdiction of the Criminal Proceeding to the NABU.

As has already been stated, the pre-trial investigation of the Criminal Proceeding is conducted by investigators of the MID SSU.

At the same time, conducting the pre-trial investigation of the Criminal Proceeding by investigators of the MID SSU violates the requirements of Clause 1 Part 5 Art. 216, Part 1 Art. 218, Part 5 Art. 36 of the CPC of Ukraine in view of the following.

On 28.04.2025, Boguslayev V.O. was notified of suspicion of committing criminal offenses provided for by Part 5 of Art. 191, Part 3 of Art. 209 of the CC (hereinafter – the Suspicion).

On 25.04.2025, in the Criminal Proceeding, a Notification of suspicion was drawn up regarding Boguslayev O.V. concerning the crime provided for by Part 3 of Art. 209 of the CC of Ukraine.

According to the investigation's version:

(1) Boguslayev V.O., during 1994-2015, abusing his official position, allegedly unlawfully took possession of shares of JSC "Motor Sich" at an undervalued cost as a result of failure to index the value of property during the privatization of SE "Motor Sich".

(2) Subsequently, Boguslayev V.O. and Boguslayev O.V. allegedly legalized proceeds obtained through crime, namely sold shares of JSC "Motor Sich" (which were acquired through crime) to representatives of the PRC through controlled non-resident companies.

(3) Thereafter, the funds received were transferred to personal accounts of Boguslayev O.V.

At the same time, the crimes incriminated by the investigation against Boguslayev V.O. were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25.05.2006-29.08.2019 (Annexes 7-10).

Thus, according to the investigation's version, the taking of possession of property in an especially large amount (Part 5 of Art. 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine. This, in turn, indicates the exclusive investigative jurisdiction of the Criminal Proceeding to the NABU.

Thus, pursuant to Clause 1 Part 5 Art. 216 of the CPC of Ukraine, detectives of the NABU conduct pre-trial investigation of criminal offenses provided for, inter alia, by Arts. 191, 209 of the CC of Ukraine, if the criminal offense was committed, in particular, by a People's Deputy of Ukraine.

In addition, pursuant to Clause 2 Part 5 Art. 216 of the CPC, detectives of the NABU conduct pre-trial investigation of criminal offenses provided for, inter alia, by Arts. 191, 209 of the CC of Ukraine, if the amount of damage caused by the offense exceeds 5 thousand sizes of the subsistence minimum (as of today, UAH 16,640,000).

According to the investigation's version, the amount of damage caused by the criminal offense provided for by Part 5 Art. 191 of the CC of Ukraine, as of 17.06.1994, constitutes over UAH 93.5 million, and as of 2021, taking into account consumer price indices (inflation), constitutes UAH 18.05 billion (p. 12 of the Notification of suspicion, Annex 11).

The size of the subject matter of the criminal offense provided for by Art. 209 of the CPC of Ukraine constitutes USD 650 million (p. 31 of the Suspicion).

Consequently, the Criminal Proceeding is within the investigative jurisdiction of the NABU, since the criminal offenses incriminated against Boguslayev V.O. – Part 5 Art. 191, Part 3 Art. 209 of the CC of Ukraine, were allegedly committed by him during the period of his tenure as a People's Deputy of Ukraine, and the amount of damage caused by them exceeds the threshold established by Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

In addition, such investigative jurisdiction of the NABU in the present case is exclusive (i.e. such that precludes the investigation of the Criminal Proceeding by other bodies) in view of the following:

(1) Pursuant to Part 5 Art. 36 of the CPC of Ukraine, it is prohibited to instruct another body of pre-trial investigation with conducting pre-trial investigation of a criminal offense assigned to the investigative jurisdiction of the NABU, except in cases of existence of objective circumstances that preclude the functioning of the NABU or the conduct of pre-trial investigation by it under martial law.

In this Criminal Proceeding, circumstances precluding the functioning of the NABU are absent.

(2) Part 5 Art. 36 of the CPC of Ukraine establishes that conducting pre-trial investigation of a criminal offense committed by a People's Deputy of Ukraine is prohibited to other bodies of pre-trial investigation, except the NABU and the central apparatus of the SBI in accordance with their investigative jurisdiction.

Taking into account the above, the Criminal Proceeding belongs to the exclusive investigative jurisdiction of detectives of the NABU.

Thus, Part 5 Art. 36, Parts 2, 5 Art. 216 of the CPC of Ukraine establish the absence of authority in bodies of the Security Service of Ukraine to conduct pre-trial investigation in the Criminal Proceeding.

At the same time, pursuant to Part 2 Art. 19 of the Constitution of Ukraine, state power bodies, their officials are obliged to act only on the basis, within the powers and in the manner provided for by the Constitution and laws of Ukraine.

Thus, the NABU is the sole body authorized to conduct pre-trial investigation in the Criminal Proceeding.

2. Regarding the possibility of NABU detectives to investigate crimes assigned to the investigative jurisdiction of investigators of other bodies.

As was already stated earlier, the grounds for refusal set forth in the Ruling of prosecutor Safaryan O.E. are, in particular:

(1) The crimes provided for by Art. 191 and Art. 209 of the CC of Ukraine were detected during the investigation of other criminal offenses assigned to the investigative jurisdiction of investigators of security bodies;

(2) Pre-trial investigation in the Criminal Proceeding is also conducted on the facts of commission of other criminal offenses.

At the same time, the crimes provided for by Arts. 191 and 209 of the CC of Ukraine were investigated within separate criminal proceedings No. 42022000000001850 and No. 42024000000000741. Subsequently, these criminal proceedings were merged with criminal proceeding No. 22017000000000272.

At the same time, a criminal proceeding regarding a People's Deputy of Ukraine is the exclusive investigative jurisdiction of the NABU.

Thus, instead of transferring the investigation of the criminal proceeding to the authorized body, the prosecution merged these criminal proceedings into one.

By doing so, the prosecution itself created grounds for investigating crimes assigned to the investigative jurisdiction of the MID SSU and the NABU.

Along with this, it should be noted that pursuant to Para. 14 Part 5 Art. 216 of the CPC of Ukraine, detectives of the NABU, in addition to crimes belonging to the investigative jurisdiction of the NABU, may investigate crimes assigned to the investigative jurisdiction of other bodies. A decision on this is taken by the Director of the NABU in agreement with the prosecutor of the SAPO.

Moreover, the criminal offenses provided for by Arts. 191, 209 of the CC of Ukraine may be severed into a separate proceeding, the investigation of which will be instructed to the NABU.

Thus, the CPC of Ukraine expressly provides that the NABU may conduct pre-trial investigation of offenses assigned to the investigative jurisdiction of other bodies.

3. Regarding the argument on the absence in Boguslayev V.O. of the status of a People's Deputy of Ukraine at the moment of notification of suspicion.

The prosecutor, in refusing to satisfy the Motion, indicated that Boguslayev V.O., at the time of the notification of suspicion, no longer held the status of a People's Deputy of Ukraine.

By doing so, the prosecutor links the possibility of assigning the Criminal Proceeding to the investigative jurisdiction of the NABU exclusively with a person having the active status of a People's Deputy.

As was already stated, according to the investigation's version, the crimes incriminated against Boguslayev V.O., provided for by Arts. 191, 209 of the CC of Ukraine, were committed during the period of his tenure in the status of a People's Deputy of Ukraine.

Pursuant to Clause 1 Part 5 Art. 216 of the CPC of Ukraine, detectives of the NABU conduct pre-trial investigation of criminal offenses provided for, inter alia, by Arts. 191, 209 of the CC of Ukraine, if the criminal offense was committed, in particular, by a People's Deputy of Ukraine.

We note that the CPC of Ukraine does not establish a requirement that the special status of the alleged subject of a crime must extend to the entire period of investigation of the proceeding (in particular, that at the moment of notification of suspicion the person must continue to hold such status).

That is, for the period of investigation, a person may not possess the corresponding status. For the investigative jurisdiction of the NABU, the decisive factor is that the person possessed such special status at the moment of commission of the alleged criminal offense.

Moreover, the CPC of Ukraine does not establish that the alleged commission of a crime must be linked with the person having such special status (with its use).

Instead, the Notification of suspicion to Boguslayev V.O. (p. 23 of the Suspicion) expressly states that the latter, "taking advantage of his name and influence as a People's Deputy of Ukraine", in 2014 entered into negotiations with citizens of the PRC for the purpose of selling shares of JSC "Motor Sich".

That is, even according to the investigation's version, Boguslayev V.O. used his status as a People's Deputy to facilitate the commission of the crime provided for by Art. 209 of the CC of Ukraine.

This assertion of the prosecutor additionally indicates the groundlessness of his Ruling dated 03.06.2026, as he, pointing to the absence in Boguslayev V.O. of the active status of a People's Deputy and its use, ignores the contrary assertions stated in the Notification of suspicion.

Thus, the absence in a person of the active status of a People's Deputy of Ukraine at the moment of completion of the crime is not an obstacle to the investigative jurisdiction of the Criminal Proceeding to the NABU.

4. Regarding the absence of impact of the fact of disposal of JSC "Motor Sich" from state ownership on the possibility of conducting pre-trial investigation by detectives of the NABU.

Among the grounds for refusal to determine the investigative jurisdiction of the Criminal Proceeding to the NABU, the prosecutor also indicated the disposal of JSC "Motor Sich" from state ownership at the moment of completion of the alleged commission by Boguslayev V.O. of the crimes provided for by Arts. 191, 209 of the CC of Ukraine.

Evidently, such conclusion of the prosecutor is linked with an incorrect interpretation of the provisions of Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

Thus, pursuant to Clause 2 Part 5 Art. 216 of the CPC of Ukraine, one of the conditions for investigative jurisdiction of the Criminal Proceeding to the NABU is that the amount of damage caused in criminal offenses provided for, inter alia, by Arts. 191, 209 of the CC of Ukraine, exceeds five thousand sizes of the subsistence minimum for able-bodied persons established at the time of commission of the crime.

At the same time, this requirement applies to special subjects, in particular, to officials of a state body.

As has already been repeatedly stated, during the period of alleged commission of the crimes provided for by Arts. 191, 209 of the CC of Ukraine, Boguslayev V.O. was a People's Deputy of Ukraine.

Pursuant to Part 3 Art. 18 of the CC of Ukraine, officials are persons who permanently, temporarily or under special authority exercise functions of representatives of authority, as well as permanently or temporarily occupy positions in state power bodies.

The Grand Chamber of the Criminal Cassation Court within the Supreme Court in its ruling in case No. 991/3966/20 dated 27.11.2023 indicated that: "a People's Deputy is a representative of authority, since he exercises the powers of a representative of the legislative branch of power and, accordingly, is a special subject of committing the criminal offense provided for by Art. 364 of the CC, in the form of abuse of power".

Accordingly, Boguslayev V.O. was an official of a state body within the meaning of Art. 18 of the CC of Ukraine and Clause 2 Part 5 Art. 216 of the CPC of Ukraine, and therefore falls under the scope of Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

In addition, the Constitutional Court of Ukraine in Decision dated October 17, 2002 No. 17-rp/2002 stated: "As a state power body, the Verkhovna Rada of Ukraine is a collegial body consisting of four hundred and fifty People's Deputies of Ukraine".

Thus, Boguslayev V.O., being a People's Deputy of Ukraine, was also an official of a state body.

Also, the Suspicion indicates that the amount of damage caused by the criminal offense provided for by Part 5 Art. 191 of the CC of Ukraine, as of 17.06.1994, constitutes over UAH 93.5 million, and as of 2021, taking into account consumer price indices (inflation), constitutes UAH 18.05 billion (p. 12 of the Suspicion).

The specified amount of damage exceeds the threshold established by Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

Likewise, since according to the investigation's version, the funds derived as a result of taking possession of shares of JSC "Motor Sich" were subsequently legalized, it should be stated that the amount of legalized property exceeds the threshold established by Clause 2 Part 5 Art. 216 of the CPC.

Consequently, the crimes under Arts. 191, 209 of the CC of Ukraine, allegedly committed by Boguslayev V.O., fall under Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

Thus, the fact of disposal of JSC "Motor Sich" from state ownership at the moment of completion of the alleged commission by Boguslayev V.O. of the crimes provided for by Arts. 191, 209 of the CC of Ukraine in no way affects the investigative jurisdiction of the Criminal Proceeding to the NABU.

5. Regarding the absence of impact of instructing pre-trial investigation and resolving the dispute on investigative jurisdiction on the prosecutor's duty to determine investigative jurisdiction to the NABU.

Other arguments of the prosecutor for refusing to satisfy the Motion are, in particular, that:

(1) On 11.07.2019, the Prosecutor General adopted a decision on instructing the MID SSU to conduct pre-trial investigation of the Criminal Proceeding due to its inefficiency;

(2) On 30.09.2025, the acting Prosecutor General resolved the dispute on investigative jurisdiction of the Criminal Proceeding and determined it behind the MID SSU.

Part 2 Art. 218 of the CPC of Ukraine regulates the procedure of actions of an investigator/prosecutor in the event of detecting non-investigative jurisdiction of a criminal proceeding to an investigative body.

In particular, the specified norm establishes the duty of the prosecution to duly respond to detected facts and circumstances that indicate a violation of investigative jurisdiction within a criminal proceeding.

Thus, pursuant to Para. 3 Part 2 Art. 218 of the CPC of Ukraine, a prosecutor, in the event of independent establishment of circumstances indicating the necessity to determine another investigative jurisdiction, within ten days from the day of establishing such circumstances, is obliged to adopt a ruling on determination of investigative jurisdiction.

Consequently, the specified norm establishes:

(1) the duty of the prosecutor to determine another investigative jurisdiction;

(2) the ground for determining another investigative jurisdiction;

(3) the period within which the prosecutor must adopt a decision on changing the investigative jurisdiction of the proceeding.

We note that the specified norm establishes precisely the duty of the prosecutor, in the event of violation of investigative jurisdiction, to take actions aimed at determining the proper investigative jurisdiction.

At the same time, the CPC of Ukraine contains no other conditions for the prosecutor to perform his direct duty.

In particular, there is no prohibition whatsoever for a prosecutor to independently determine the investigative jurisdiction of a proceeding if it had previously been determined by the Prosecutor General or his deputy.

Thus, instructing pre-trial investigation and resolving the dispute on investigative jurisdiction in no way affect the prosecutor's duty to determine investigative jurisdiction to the NABU.

6. Regarding the right of appeal.

Pursuant to Part 6 Art. 36 of the CPC of Ukraine, the Prosecutor General, his deputy, during pre-trial investigation, have the right to revoke unlawful and unjustified rulings of lower-level prosecutors.

On 03.06.2026, in violation of the requirements of the CPC of Ukraine, prosecutor Oleksandr Safaryan refused to change the investigative jurisdiction of the criminal proceeding, and issued a Ruling thereon, the illegality of which is substantiated in Sections 1-5 of this Complaint.

Thus, the Ruling dated 03.06.2026 on refusal to satisfy the Motion on determination of investigative jurisdiction of the criminal proceeding to the NABU is unlawful and is subject to revocation by a superior prosecutor under the procedure of Part 6 Art. 36 of the CPC.

Taking into account the above, guided by Arts. 8, 9, 36, 216, 218 of the CPC of Ukraine, -

I REQUEST:

(1) To revoke the Ruling of prosecutor of the Office of the Prosecutor General Safaryan Oleksandr Eduardovych dated 03.06.2026, issued within criminal proceeding No. 22017000000000272 On refusal to satisfy the Motion on determination of investigative jurisdiction of the criminal proceeding behind the National Anti-Corruption Bureau of Ukraine, due to its illegality and groundlessness.

(2) To determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 behind the National Anti-Corruption Bureau of Ukraine in connection with the presence of conditions provided for by Clauses 1, 2 Part 5 Art. 216 of the CPC of Ukraine and Para. 4 Part 5 Art. 36 of the CPC of Ukraine.

(3) To inform advocate Vladyslav Miftakhutdinov of the results of consideration of the Motion at the address: 01011, Kyiv, 22 Rybalska St., Entrance 13 and at the email address: v.miftakhutdinov@vbpartners.ua.

Annexes:

1. Certified copy of the Certificate on the right to practice law.
2. Certified copy of the Order on the provision of legal assistance.
3. Certified copy of the Extract from the URPI regarding Criminal Proceeding No. 22017000000000272.
4. Certified copy of the Ruling of the First Deputy Prosecutor General on determining the group of prosecutors dated 07.02.2025.
5. Certified copy of the Motion on determination of investigative jurisdiction dated 29.05.2026.
6. Certified copy of the Ruling on refusal to satisfy the Motion on determination of investigative jurisdiction dated 03.06.2026.
7. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 25.05.2006 to 23.11.2007 (V convocation).
8. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 23.11.2007 to 12.12.2012 (VI convocation).
9. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 12.12.2012 to 27.11.2014 (VII convocation).
10. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 27.11.2014 to 29.08.2019 (VIII convocation).
11. Certified copy of the Notification of suspicion to Boguslayev V.O.

19.06.2026

Defense Counsel **V.S. Miftakhutdinov**

NATIONAL ASSOCIATION
OF ADVOCATES OF UKRAINE

CERTIFICATE

ON THE RIGHT TO PRACTICE LAW



Series VL No. 1340

Pursuant to the Law of Ukraine **"On the Bar and Practice of Law"**

Cit. **Miftakhtdinov Vladyslav Serhiyovych**
(surname, first name, patronymic)

has the right to practice law

Grounds: decision **of the Bar Council of Volyn Region**
(name of the regional Bar Council)

dated **27.08.2021** No. **2/69-8**

Chairman **of the Bar Council of Volyn Region**
(name of the regional Bar Council)

H.A. Rudenko

" 27 " August 2021

L.S. 691818

SERIES AS **№ 1182690**

(link to advocate profile in ERAU)

NATIONAL ASSOCIATION OF ADVOCATES OF UKRAINE

ORDER

ON THE PROVISION OF LEGAL ASSISTANCE

Boguslayev Oleksandr Vyacheslavovych

(surname, first name, patronymic or name of the person provided with legal assistance)

on the grounds of:

legal assistance agreement / assignment of the body (institution) authorized by law to provide free legal assistance **No. w/n** dated **" 09 " May 2025**

in **the High Anti-Corruption Court**

(name of the body in which legal assistance is provided)

Advocate

Miftakhutdinov Vladyslav Serhiyovych

(surname, first name, patronymic of the advocate providing legal assistance)

Certificate of the right to practice law No. 1340 dated August 27, 2021
issued by the Bar Council of Volyn Region on the basis of
decision No. 2/69-8 dated August 27, 2021

Issued by the bar association:
"Law Association "VB PARTNERS"

(full name of the bar association issuing the order)

01011, Kyiv, city of Kyiv, Pecherskyi district, 22 Rybalska St., Entrance 13

(workplace address of the advocate if it differs from the registered office address of the bar association issuing the order)

By the legal assistance agreement
the advocate's powers are not limited.

Advocate: _____
(Advocate's signature)

" 16 " April 2026

Head of the bar association: _____
(Head's signature)

(Підпис адвоката)

(Підпис керівника)

EXTRACT
FROM THE UNIFIED REGISTER OF PRE-TRIAL INVESTIGATIONS

Criminal Proceeding Number: 22017000000000272

Date of registration of proceeding (severance of materials of pre-trial investigation): 06.07.2017 20:57:57

№1

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	06.07.2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	Deposit Guarantee Fund (Code 21708016)
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	06.07.2017 20:50:20
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 14 Part 1; Art. 113 (in force until 07.03.2022)
Brief statement of circumstances that may indicate commission of criminal offense: During the period from 2016 to the present time, unidentified individuals from among current and former officials and ultimate beneficial owners of Public Joint-Stock Company "Motor Sich" (USREOU code 14307794), acting by prior conspiracy among themselves, with the purpose of weakening the state through destruction of the specified enterprise as an object of significant economic and defense importance, committed a series of transactions for the purchase and sale of a controlling stake in the Factory to non-resident companies "Business House Helena, AG" (Panama), "Enfields Trade & Capital Corp." (Panama), "Waldo Trade Ltd." (Virgin Islands), "Granum Corporation" (Panama), "Skyrizon Aircraft Holdings Limited" (Virgin Islands), "Likatron Enterprises Limited" (Cyprus), "Ventalina Management Ltd" (Nevis), which have no intention of conducting business activities by the specified enterprise, but plan its liquidation and removal of assets, including production capacities of the only factory in Ukraine for the production of civil and military turbojet engines for aviation equipment, outside of Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№2

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	04.08.2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	notifications of enterprises, institutions, organizations and officials
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	04.08.2017 13:58:00
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 212 Part 3
Brief statement of circumstances that may indicate commission of criminal offense:	

It has been established that officials of JSC "MOTOR SICH" (USREOU code 14307794), acting intentionally, by prior conspiracy with unidentified persons, in violation of the provisions of tax legislation, as a result of minimizing the value of privatized property, evade the payment of taxes, which leads to the non-receipt by the State Budget of Ukraine of funds in particularly large amounts.
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№3

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	04.08.2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	notifications of enterprises, institutions, organizations and officials
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	04.08.2017 14:03:01
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 209 Part 2 (in force until 28.04.2020)
Brief statement of circumstances that may indicate commission of criminal offense: It has been established that officials of JSC "MOTOR SICH" (USREOU code 14307794), acting intentionally, by prior conspiracy with unidentified persons, acquired property obtained as a result of committing a socially dangerous, unlawful act that preceded the legalization (laundering) of proceeds, when conducting operations for privatization of property of State Enterprise "MOTOR SICH", by violating the established norms of the Law of Ukraine "On Privatization of State Property" dated 04.03.1992.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№4

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15.07.2019
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquiry officer (authorized person of another department) of criminal offense, including during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15.07.2019 21:40:44
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 1
Brief statement of circumstances that may indicate commission of criminal offense:	

During the period from 2015 to the present time, unidentified officials and beneficial owners of PJSC "Motor Sich" (Ukraine, USREOU 14307794), from among citizens of Ukraine, acting intentionally, provide assistance to the Russian Federation in conducting subversive activities against Ukraine, through manufacturing, repair, maintenance and extension of the service life of aviation gas turbine engines for airplanes and helicopters and/or their parts and components, in the interests of the Russian army, the state company of the Russian Federation "Flight Detachment Russia", the Federal Security Service of the Russian Federation, JSC "218 Aviation Repair Plant" (Russian Federation). In order to ensure the aforementioned unlawful activity, in particular the export from Ukraine to the Russian Federation of goods of military purpose and dual-use for the purpose of their military end-use, the Russian Federation involved JSC "Borisphen" (Russian Federation), "Helicopter complexes and multifunctional systems" (Russian Federation, abbreviated name "VKMS"), "Vladimir Klimov – Motor Sich" (Russian Federation, abbreviated name: "VK-MS"), "Losiny Ostrov" (Russian Federation), "Aviaremont-MS" (Russian Federation), "LLC "Aviatech" (Russian Federation), "Donetsk branch of "LLC "Aviatech" (DPR), "D.O.O. Inzeniring BN" (Bosnia and Herzegovina), "Double Power FZE" (United Arab Emirates).
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№5

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.08.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by prosecutor of criminal offense
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.08.2020 16:23:55
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 3; Art. 190 Part 4 (in force until 11.08.2023)
Brief statement of circumstances that may indicate commission of criminal offense: On 29.01.2016 between company Skyrizon Aircraft Holdings Limited and JSC "Motor Sich" loan agreement No. 3104/16-D (FEU) was concluded. According to the terms of this agreement, JSC "Motor Sich" received a loan of 100,000,000 (one hundred million) US dollars. On 28.12.2019 between company Skyrizon Aircraft Holdings Limited and Yarga Investments LTD, an agreement on assignment of the claim right (cessation) was concluded. According to the terms of the specified agreement, the claim right under the loan agreement dated 29.01.2016 No. 3104/16-D (FEU) passed to Yarga Investments LTD. At the same time, representatives of company Skyrizon Aircraft Holdings Limited did not conclude the agreement on assignment of the claim right (cessation) dated 28.12.2019. Thus, unidentified persons attempted to take possession by deception (fraud) of funds in particularly large amounts belonging to company Skyrizon Aircraft Holdings Limited.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№6

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.09.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	

detection from another source of circumstances that may indicate commission of criminal offense:	
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.09.2020 12:06:21
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 190 Part 4 (in force until 11.08.2023)
Brief statement of circumstances that may indicate commission of criminal offense: To the Investigation Department of the Main Department of the National Police in Odesa Region an application was received from a representative of company "S.A.H.L." regarding the fact of taking possession by deception of property, namely funds, in particularly large amounts (UEO 1878 dated 09.09.2020).	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№7

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.09.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.09.2020 12:09:54
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 358 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: To the Investigation Department of the Main Department of the National Police in Odesa Region an application was received from a representative of company "S.A.H.L." regarding the fact of forgery of documents on the basis of which unidentified persons by deception took possession of property, namely funds, in particularly large amount.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№8

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	23.11.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	

Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	23.11.2020 15:35:06
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 3; Art. 190 Part 4 (in force until 11.08.2023)
Brief statement of circumstances that may indicate commission of criminal offense: It has been established that unidentified persons, acting on behalf of company Skyrizen Aircraft Holding Limited and with the aim of fraudulently taking possession of the funds of the said company, forged an agreement on assignment of the right of claim dated 28.12.2019, according to which Skyrizen Aircraft Holding Limited allegedly assigned the right of claim in favor of company Yarga Investments LTD in the amount of 100 000 000 US dollars under the loan agreement dated 29.01.2016 No. 3104/16-D(FEU), concluded between Skyrizen Aircraft Holding Limited and JSC “Motor Sich” (UEO 8792 dated 23.11.2020)	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№9

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	03.12.2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	03.12.2020 20:35:18
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 364 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: During the period from 15.07.1994 to the present time, officials and beneficial owners of JSC “Motor Sich”, acting out of mercenary motives, abusing their official position, by prior conspiracy with officials of the State Property Fund of Ukraine unlawfully received into free use and possess state property without payment of mandatory payments for use in the total amount of UAH 520 million, which caused grave consequences to legally protected state and public interests.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№10

Date of receipt of application, notification of commission of criminal offense or detection from another	20.08.2020

source of circumstances that may indicate commission of criminal offense:	
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	Vitiuk Vasyl Viktorovych
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29.12.2020 16:02:22
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 1; Art. 113 (in force until 07.03.2022)
Brief statement of circumstances that may indicate commission of criminal offense: By the ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv O.V. Mielieshak dated 04.11.2020, an authorized person (investigator) of the Security Service of Ukraine was obliged to enter into the Unified Register of Pre-trial Investigations information based on the application of V.V. Vitiuk dated 18.08.2020, according to which unidentified persons, through filing on 05.08.2020 an application to the Commercial Court of Zaporizhzhia Region on behalf of LLC “Asset Management Company and Pension Funds Administration “Aktiv Plus” (USREOU 32977421) in the interests of the corporate non-state pension fund “Ukrainian Pension Foundation” (USREOU 34001274), signed by Yu.V. Hordiichuk, are attempting to establish control over key assets of JSC “Motor Sich” (USREOU 14307794) and liquidate it as a strategic enterprise.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№11

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25.01.2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25.01.2021 17:29:19
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1 (in force until 01.07.2020)
Brief statement of circumstances that may indicate commission of criminal offense: In July – December 2019, officials of PJSC “Motor Sich” (USREOU 14307794) in the area of activity of the Chernihiv Customs of the SFS, in violation of the established procedure for the implementation of international transfers of goods subject to state export control, carried out the export of aviation engines VK-2500-03 (without installed purchased units) to the address of company “SIA AEROSERVICE” (Republic of Latvia).	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№12

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16.03.2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	17.03.2021 17:10:49
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 233 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: In the period from 1993 to 2015, officials of the State Property Fund of Ukraine, acting by prior conspiracy by a group of persons, carried out privatization of state property, namely the integrated property complex of SOE “Motor Sich”, by understating its value through determining it in a manner not provided for by law, namely unlawfully excluded from the total value of the integrated property complex of SOE “Motor Sich” property that was subject to privatization, did not conduct mandatory indexation of fixed assets of the privatization object, in large amounts, that is, for an amount that exceeds by a thousand and more times the tax-free minimum income of citizens.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№13

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	18.03.2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	18.03.2021 10:24:02
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: upon the fact that V.O. Boguslayev, honorary president of JSC “Motor Sich”, in 2017, acting in the interests of the Russian Federation, sold the controlling stake of shares of JSC “Motor Sich” to the Chinese company Skyrizon, thereby providing a foreign state with assistance in conducting subversive activity against Ukraine with the aim of causing damage to the defense capability of Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№14

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25.06.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25.06.2022 23:59:54
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: In 2022, citizens of Ukraine V.O. Boguslayev and N.B. Ulyanenko provide representatives of the Russian Federation with assistance in conducting subversive activity against Ukraine to the detriment of the defense capability and state security of Ukraine, under martial law.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№15

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15.08.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16.08.2022 18:02:32
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Onto the territory of Ukraine to the address of Ukrainian enterprise JSC “Motor Sich” (USREOU 14307794) by enterprises of the aggressor state, the Ministry of Defense of the Republic of Belarus, as well as enterprises of the Republic of Belarus, which supports the Russian Federation in armed aggression against Ukraine through providing the armed forces of the aggressor state with unhindered access to its territory and military infrastructure facilities for conducting combat operations against Ukraine, special-purpose machines and mechanisms were imported for carrying out repair works on the basis of agreements that as of 15.08.2022 are not fulfilled, whereby the conduct of economic activity in cooperation with the aggressor state is actually ensured, paying taxes to the budget of the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№16

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15.08.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16.08.2022 18:08:14
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Onto the territory of Ukraine to the address of Ukrainian enterprise and LLC “Vinnytsia Aviation Plant “VIAZ” (USREOU 37617817) by enterprises of the aggressor state, the Ministry of Defense of the Republic of Belarus, as well as enterprises of the Republic of Belarus, which supports the Russian Federation in armed aggression against Ukraine through providing the armed forces of the aggressor state with unhindered access to its territory and military infrastructure facilities for conducting combat operations against Ukraine, special-purpose machines and mechanisms were imported for carrying out repair works on the basis of agreements that as of 15.08.2022 are not fulfilled, whereby the conduct of economic activity in cooperation with the aggressor state is actually ensured, paying taxes to the budget of the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№17

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28.09.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28.09.2022 11:32:43
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Officials of JSC “Motor Sich” (USREOU 14307794), including those who also have citizenship of the aggressor state, upon order of a number of enterprises of the aggressor state and the Republic of Belarus, which in turn perform works and/or provide services for the ministry of defense of the russian federation, the federal security service of the russian federation and other military and law enforcement agencies of the aggressor state and the Republic of Belarus, carry out repair, service maintenance and provision with spare parts of aviation equipment, whereby transfer of material resources to armed or paramilitary formations of the aggressor state is carried out, as well as conduct of economic activity in cooperation with the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	

Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№18

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.10.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.10.2022 14:40:27
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev, in pursuance of an agreement with a representative of the aggressor state the RF, organized deliveries of commodity products – spare parts for capital repairs of engines TV3-117VM, AI-9V, AI-25TLK, which are used in military aviation of the RF, in the total amount of UAH 71 265 189.44.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№19

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.10.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21.10.2022 14:43:02
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 111-2 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev in May 2022 agreed to a proposal from a representative of the aggressor state regarding the supply of goods – “aviation engines and spare parts “TV3-117VM series 02”, VK-2500, instruments “NR-3000” etc., which are used in military aviation of the RF.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№20

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.12.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.12.2022 16:52:32
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 114-1 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev obstructed the lawful activity of the AF of Ukraine and other military formations through creating obstacles in the implementation of the forced alienation of a helicopter that belonged by right of ownership to PJSC “Motor Sich” for the needs of the state under martial law, as well as the execution of the state defense order	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№21

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.12.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	09.12.2022 16:57:07
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 258-3 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: In particular, P.I. Kononenko, being an authorized person on matters of representation of commercial interests of JSC “Motor Sich” on the territory of the RF, with the complicity of V.O. Boguslayev, P.I. Zaruba, O.V. Dziuba, developed and used direct connections with representatives of the MIC of the RF, from December 2017, contrary to existing national prohibitions on movement of cargo across the contact line within Donetsk and Luhansk regions, ensured the supply of blades for aviation engines from the SD “Snizhne Machine-Building Plant of JSC “Motor Sich” (TOT), which was accompanied by payment of taxes in favor of the “DPR”, thereby carrying out organizational and other assistance to the activity of a terrorist organization	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№22

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29.12.2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29.12.2022 14:20:24
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 209 Part 3
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev by prior conspiracy with O.V. Boguslayev, Yu.V. Kunaiev, P.I. Kononenko, with his son - A.P. Kononenko, in the period of time from 2014 to 2022 acquire, possess, use and dispose of property regarding which factual circumstances indicate its receipt by criminal means (in particular providing organizational and other assistance to the activity of a terrorist organization through providing funds to legal entities whose property is indirectly under the control of terrorists, as well as to legal entities and natural persons who act on behalf of or under the instruction of the said persons) including through conducting financial operations, performing transactions with such property, or transfer, change of form (transformation) of such property	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№23

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	27.02.2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	06.03.2023 14:37:46
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: By an unidentified official of PJSC “Motor Sich” from 2020 to 2022 intentional unlawful acts were committed regarding the export of a set of aviation units for engines VK-2500-03 without corresponding permits of the State Service of Export Control of Ukraine, that is, violation of the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	

Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№24

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20.03.2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28.03.2023 12:46:43
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: In 2018, official of JSC “Motor Sich” O.V. Dziuba exported to the United Arab Emirates and Serbia 6 aviation engines TV3-117VMA series 02, without corresponding permits of the State Service of Export Control of Ukraine, thereby violating the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№25

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	11.10.2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	19.10.2023 11:06:56
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: On 03.08.2022, officials of JSC “Motor Sich”, without obtaining from State Export Control the corresponding permit, carried out to the address of the foreign company “VIH Helicopters LTD” (Canada) export (under the customs regime EK 11 AA – re-export, namely: return export of goods that were previously imported into the customs territory of Ukraine) of two aviation engines TV3-117VMA series 02, and on 28.07.2021 and 17.10.2022 their medium and capital repairs, respectively, thereby violating the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№26

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29.04.2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20.05.2024 11:14:06
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-2 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “MOTOR SICH”, bypassing the legislation of Ukraine, through disguising their actions under the guise of deliveries to the address of “IMACO COMMERCE LIMITED PARTNERSHIP”, “ASSTRA POLSKA sp. z.o.o”, JSC “Uzbekneftegaz”, carried out the supply of material resources – gas turbine drives AI-336-2-8 to representatives of the aggressor state – the russian federation to ensure the needs of its gas extraction industry, which is actually one of the main sources of financing Russia’s military aggression against Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№27

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	13.05.2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	JSC Motor Sich (Code 14307794)
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	30.05.2024 17:10:36
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 219 (in force until 01.07.2020)
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “Motor Sich”, who acted as a group of persons by prior conspiracy with persons who exercised effective control over the enterprise – V.O. Boguslayev, O.V. Boguslayev, as well as persons who without permission of the AMCU performed actions aimed at taking possession of the production assets of the enterprise in the interests of Beijing Skyrizon Aviatin Indastry Investments Co. Ltd and acted indirectly through offshore companies – Wang Jing, Du Tao, Li Fengjiu, Xu Changshun, Ren Jinglin, Liu Yangning, performed actions aimed at bringing the enterprise to bankruptcy, in particular through the formation of debt in the amount of over USD 100 million, as well as siphoning off in favor of V.O. Boguslayev, O.V. Boguslayev assets of the enterprise, in particular those received under a loan, thereby causing the enterprise property damage in particularly large amounts.	

Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

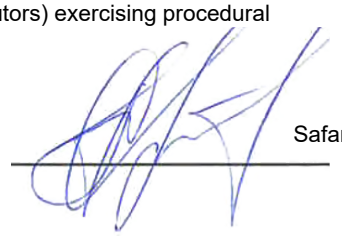
№28

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20.05.2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	30.05.2024 17:36:30
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 191 Part 5
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “Motor Sich”, who acted as a group of persons by prior conspiracy with persons who exercised effective control over the enterprise – V.O. Boguslayev, O.V. Boguslayev, through abuse of official position committed in their interests embezzlement of property of the enterprise, thereby causing it property damage in particularly large amounts.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

Pre-trial investigation body: Main Investigation Directorate of the SB of Ukraine

Full name of investigator (investigators)/inquirer exercising pre-trial investigation: Romashkin D.S., Kulachek A.A., Miroshnyk O.V., Hryhorieva A.A., Dryvynskyi A.P., Dunai D.O., Kravchenko O.L., Khrystoforov V.F., Khliebnikova O.M., Vorona V.O.

Full name of prosecutor (prosecutors) exercising procedural guidance: Safarian O.E., Chorna O.M., Trush S.A., Stotskyi M.V., Kaspruk D.I., Bukalo I.S., Tomchai R.V., Dolbeshchenkov D.O., Kisilevych I.P., Zhyla O.B., Yehzhov R.D., Harasym S.Y., Zhovnerchuk Ya.V.

Registrar's signature  Safarian O.E.

Department prosecutor

19.03.2025

Prosecution Service of Ukraine
OFFICE OF THE PROSECUTOR GENERAL
13/15 Riznytska St., Kyiv, 01011 fax: (044) 280-26-03
e-mail: office@gp.gov.ua, web: www.gp.gov.ua
USREOU Code 00034051

_____ No. _____ To No. _____ dated _____

RESOLUTION
on changing the group of prosecutors

City of Kyiv «07» February 2025

First Deputy Prosecutor General Oleksiy Mykolayovych Khomenko, having examined the materials of criminal proceedings No. 22017000000000272,

ESTABLISHED:

The Main Investigation Directorate of the Security Service of Ukraine is conducting a pre-trial investigation in criminal proceedings No. 22017000000000272 dated 06.07.2017 under Part 1 of Art. 14, Art. 113, Part 2 of Art. 209, Part 3 of Art. 212, Part 1 of Art. 111, Part 3 of Art. 15, Part 4 of Art. 190, Part 4 of Art. 358, Part 2 of Art. 364, Part 1 of Art. 15, Art. 113, Part 1 of Art. 333, Part 2 of Art. 233, Part 2 of Art. 111, Part 4 of Art. 111-1, Part 2 of Art. 28, Part 4 of Art. 111-1, Part 2 of Art. 28, Part 1 of Art. 111-2, Part 1 of Art. 114-1, Part 2 of Art. 28, Part 1 of Art. 258-3, Part 3 of Art. 209, Part 1 of Art. 333, Part 2 of Art. 28, Art. 219, Part 2 of Art. 28, Part 5 of Art. 191 of the CC of Ukraine.

In connection with personnel changes in the Office of the Prosecutor General, the impossibility of the exercise of powers by prosecutors in the previous composition of the group, for the purpose of ensuring an effective pre-trial investigation, supervision thereof in the form of procedural guidance, it is necessary to change the group of prosecutors.

In view of the above, guided by Arts. 37, 110 of the CPC of Ukraine,

RESOLVED:

1. To change the group of prosecutors who will exercise supervision over the observance of laws in the form of procedural guidance of the pre-trial investigation in criminal proceedings No. 22017000000000272, designating it composed of:

- Head of the Directorate for Organization and Procedural Guidance of Pre-Trial Investigation and Support of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General **Kisilevych I.P.**, Deputy Head of this Directorate **Zhyla O.B.**, Head of the First Division of this Directorate **Dolbeshchenkov D.O.**, Deputy Head of this Division **Yegzhov R.D.**, prosecutors of this Division **Safaryan O.E.**, **Trush S.A.**, **Kaspruk D.I.**, **Bukalo I.S.**, **Chorna O.M.**, **Tomchay R.V.**, **Zhovnerchuk Ya.V.**, **Harasym S.Y.**;

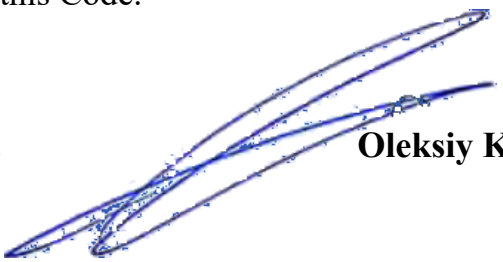
99

- prosecutor of the Second Division of the Directorate for Investment Protection and Introduction of Specialization of Prosecutors of the Department of Criminal Policy and Investment Protection of the Office of the Prosecutor General **Stotskyi M.V.**

2. As Senior of the group of prosecutors in criminal proceedings No. 22017000000000272 to designate the prosecutor of the First Division of the Directorate for Organization and Procedural Guidance of Pre-Trial Investigation and Support of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General **Safaryan O.E.**, who is entrusted with directing the actions of other prosecutors.

3. To enter the relevant information into the URPI.

The resolution is not subject to appeal during the pre-trial investigation, however, a complaint against it pursuant to Part 2 of Art. 303 of the CPC of Ukraine may be subject to examination during preparatory proceedings in court in accordance with the rules of Arts. 314 – 316 of this Code.

First Deputy Prosecutor General  **Oleksiy KHOMENKO**

Out. No. 20260529/1

To the Prosecutors in Criminal Proceeding No. 22017000000000272 –
Prosecutor of the Prosecutor General's Office Oleksandr Safaryan
13/15 Riznytska St., Kyiv, 01011

Defense Counsel: **Attorney Vladyslav Miftakhutdinov**
Entrance 13, 22 Rybalska St., Kyiv, 01011
Tel.: 097 327 02 69
E-mail: v.miftakhutdinov@vbpartners.ua

In the interests of: **Oleksandr Vyacheslavovych Boguslayev**

Criminal Proceeding
No. 22017000000000272

MOTION
on determination of investigative jurisdiction of criminal proceeding
No. 22017000000000272
(pursuant to Article 220, Part 2 of Article 218 of the CPC of Ukraine)

I, attorney Vladyslav Miftakhutdinov, provide legal assistance to Oleksandr Vyacheslavovych Boguslayev (hereinafter – the Client; powers – Annexes 1, 2).

On 25.04.2025, regarding my Client, a Notice of Suspicion was drawn up within criminal proceeding No. 22017000000000272 dated 06.07.2017 (hereinafter – the Criminal Proceeding; Annex 3).

The pre-trial investigation within the Criminal Proceeding is carried out by the Main Investigation Directorate of the Security Service of Ukraine. Procedural supervision is exercised by prosecutors of the Prosecutor General's Office.

Since 07.02.2025, You have been designated senior prosecutor of the group of prosecutors within the Criminal Proceeding (Annex 4).

The defense has grounds for filing a motion to change the investigative jurisdiction of the Criminal Proceeding, since:

(1) The Criminal Proceeding, pursuant to the provisions of the CPC, falls under the exclusive subject-matter investigative jurisdiction of NABU;

(2) The procedural duty to determine proper investigative jurisdiction of the Criminal Proceeding is imposed on the prosecutor;

(3) The prosecutor must supervise compliance with the requirements of legislation within the criminal proceeding;

(4) Proper investigative jurisdiction of the proceeding is a guarantee of observance of the Client's right to due legal process provided for by Article 2 of the CPC.

The above is substantiated by the following.

1. Regarding the exclusive investigative jurisdiction of the Criminal Proceeding by NABU

Pre-trial investigation of the Criminal Proceeding is carried out by the Main Investigation Directorate of the Security Service of Ukraine.

In the indicated Criminal Proceeding, investigators of the Main Investigation Directorate of the Security Service of Ukraine drew up Notices of Suspicion regarding V.O. Boguslayev and O.V. Boguslayev.

On 28.04.2025, V.O. Boguslayev was notified of suspicion of committing criminal offenses provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

On 25.04.2025, in the Criminal Proceeding, a Suspicion was drawn up regarding O.V. Boguslayev concerning a crime provided for by Part 3 of Article 209 of the CC.

According to the investigation's version:

(1) V.O. Boguslayev during 1994–2015, abusing his official position, allegedly unlawfully took possession of shares of JSC "Motor Sich" at an undervalued price as a result of failure to index the value of property during the privatization of the SE "Motor Sich".

(2) Subsequently, V.O. Boguslayev and O.V. Boguslayev allegedly, starting from 2015, legalized criminal proceeds, namely sold shares of JSC "Motor Sich" (which were acquired by criminal means) to representatives of the PRC.

At the same time, the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25.05.2006–29.08.2019 (Annexes 5–8).

Thus, according to the investigation's version, the misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) and the legalization of property in especially large amounts (Part 3 of Article 209 of the CC) were committed by a person who at that time was a People's Deputy of Ukraine.

This, in turn, indicates the investigative jurisdiction of such proceeding by NABU.

Thus, pursuant to paragraph 1 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives conduct pre-trial investigation of criminal offenses provided for, in particular, by **Articles 191, 209** of the CC of Ukraine, if the criminal offense is committed by a **People's Deputy of Ukraine.**

We note that the CPC of Ukraine **does not establish a requirement** that the special status of the alleged subject of the crime extend to the entire period of investigation of the proceeding.

That is, during the period of investigation, the person may not possess the corresponding status. For NABU's investigative jurisdiction, what is decisive is that the person possesses such special status at the moment of committing the alleged offense.

In addition, the CPC of Ukraine does not establish that the alleged commission of the crime **must be connected with the person having such special status** (using it).

That is, the CPC of Ukraine does not contain any indications that:

(1) At the moment of notice of suspicion the person must continue to hold the status of a People's Deputy of Ukraine;

(2) The crime must be committed using the status, powers of a People's Deputy of Ukraine.

At the same time, in the notice of suspicion to V.O. Boguslayev it is directly indicated that the legalization of property in especially large amounts (Part 3 of Article 209 of the CC) was committed by V.O. Boguslayev using his deputy status (page 23 of the Notice of Suspicion).

In addition, pursuant to paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives conduct pre-trial investigation of criminal offenses provided for, in particular, by Article **191** of the CC of Ukraine, which caused damage in an amount of more than five thousand sizes of the subsistence minimum established by law (as of today, UAH 16,640,000).

According to the investigation's version, the amount of damage caused by the Criminal offense provided for by Article 191 of the CC of Ukraine, as of 17.06.1994, is UAH 93,528,150, and as of 2021 taking into account consumer price indices (inflation) amounts to UAH 18.05 billion (page 12 of the Notice of Suspicion).

The indicated amount of damage significantly exceeds the amount of damage specified in paragraph 2 of Part 1 of Article 216 of the CPC of Ukraine, minimally required for the investigative jurisdiction of the criminal proceeding by NABU.

Therefore, the Criminal Proceeding is subject to the investigative jurisdiction of NABU, since the criminal offenses incriminated against V.O. Boguslayev – Part 5 of Article 191, Part 3 of Article 209 of the CC, were allegedly committed by him during the period of his tenure as a People's Deputy of Ukraine, and the damage caused by them significantly exceeds the amount specified in paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine.

Thus, in the Criminal Proceeding the conditions of investigative jurisdiction of the proceeding by NABU are observed:

(1) regarding the subject of the criminal offense (paragraph 1 of Part 5 of Article 216 of the CPC of Ukraine).

(2) regarding the amount of damage caused by the criminal offense provided for by Article 191 of the CC of Ukraine (paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine).

In addition, such investigative jurisdiction of NABU in this case is exclusive (i.e. such that precludes investigation of the Proceeding by other bodies) in view of the following:

(1) pursuant to Part 5 of Article 36 of the CPC of Ukraine, **it is prohibited to entrust the conduct of pre-trial investigation of a criminal offense assigned to the investigative jurisdiction of NABU to another pre-trial investigation body**, except in cases where objective circumstances exist that make the functioning of NABU or its conduct of pre-trial investigation impossible under martial law.

In this case, circumstances making the functioning of NABU impossible are absent.

(2) Part 5 of Article 36 of the CPC of Ukraine establishes that **it is prohibited for pre-trial investigation of a criminal offense committed by a People's Deputy of Ukraine to be conducted by other pre-trial investigation bodies, except for NABU** and the central apparatus of the SBI in accordance with their investigative jurisdiction.

Considering the stated, **the Criminal Proceeding falls under the exclusive investigative jurisdiction of NABU detectives.**

Thus, an analysis of Part 5 of Article 36, Parts 2, 5 of Article 216 of the CPC of Ukraine indicates the absence of authority in the bodies of the Security Service of Ukraine to conduct pre-trial investigation in the Criminal Proceeding.

At the same time, according to Part 2 of Article 19 of the Constitution of Ukraine, state power bodies and their officials are obligated to act only on the basis, within the powers and in the manner provided for by the Constitution and laws of Ukraine.

Thus, NABU is the sole body authorized to conduct pre-trial investigation in the Criminal Proceeding.

2. Regarding the prosecutor's duty to determine another investigative jurisdiction of the Criminal Proceeding.

Part 2 of Article 218 of the CPC of Ukraine regulates the procedure for actions of an investigator/prosecutor upon discovering that a criminal proceeding does not fall within the investigative jurisdiction of the investigation body.

In particular, the specified provision **establishes the duty** of the prosecution **to respond properly** to identified facts and circumstances that indicate a violation of investigative jurisdiction within a criminal proceeding.

Thus, according to paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine, the prosecutor, in the event of independent establishment of circumstances indicating the necessity to determine another investigative jurisdiction, **within ten days from the day such circumstances are established, is obligated to adopt a ruling on determining investigative jurisdiction.**

Therefore, the specified provision establishes:

(1) the prosecutor's duty to determine another investigative jurisdiction;

(2) the ground for determining another investigative jurisdiction;

(3) the time limit within which the prosecutor must make a decision on changing the investigative jurisdiction of the proceeding.

We note that the specified provision establishes precisely the duty of the prosecutor, in case of violation of investigative jurisdiction, to take actions aimed at determining proper investigative jurisdiction.

Within the Criminal Proceeding, the prosecutor is obligated to comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine another investigative jurisdiction of the Criminal Proceeding within 10 days, as:

(1) The Criminal Proceeding constitutes the exclusive investigative jurisdiction of NABU (in connection with the circumstances stated in item 1 of the Motion);

(2) The Criminal Proceeding cannot be subject to the investigative jurisdiction of the Main Investigation Directorate of the Security Service of Ukraine.

On 07.02.2025, You were included in the group of prosecutors and designated senior of the group of prosecutors.

The circumstances necessitating the change of investigative jurisdiction of the Proceeding arose on 25.04.2025 – at the moment of notice of suspicion under Part 5 of Article 191 of the CC to a special subject.

Therefore, it was from this date that such 10-day period for determining the investigative jurisdiction of the Criminal Proceeding to NABU began.

Pursuant to Part 1 of Article 220 of the CPC of Ukraine, a motion of the defense for performance of any procedural actions, the prosecutor is obligated to consider within a period of no more than three days from the moment of submission and satisfy them in the presence of appropriate grounds.

Thus, this Motion contains demands for the conduct of procedural actions (determination of investigative jurisdiction of the Criminal Proceeding) and must be considered by the prosecutor in accordance with the requirements of Article 220 of the CPC of Ukraine.

Considering the stated, guided by Articles 8, 9, 36, 216, 218, 220 of the CPC of Ukraine, -

REQUEST:

1. To comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 06.07.2017 to the National Anti-Corruption Bureau of Ukraine, as the body to which it is subject to investigative jurisdiction pursuant to paragraphs 1, 2 of Part 5 of Article 216 of the CPC of Ukraine.
2. To notify about the results of consideration of the Motion attorney Vladyslav Miftakhutdinov at the address: Entrance 13, 22 Rybalska St., Kyiv, 01011, and to the e-mail address: v.miftakhutdinov@vbpartners.ua.

Annexes:

1. Certified copy of the Certificate of the right to practice law.
2. Certified copy of the Order for provision of legal assistance.
3. Certified copy of the Extract from the ERDR.
4. Certified copy of the Resolution of the First Deputy Prosecutor General O.M. Khomenko on designating the group of prosecutors dated 07.02.2025.
5. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 25.05.2006 to 23.11.2007 (V convocation).
6. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 23.11.2007 to 12.12.2012 (VI convocation).
7. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 12.12.2012 to 27.11.2014 (VII convocation).
8. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 27.11.2014 to 29.08.2019 (VIII convocation).

29.05.2026

Defense Counsel **Vladyslav MIFTAKHUTDINOV**

Prosecution Service of Ukraine
OFFICE OF THE PROSECUTOR GENERAL
13/15 Riznytska St., Kyiv, 01011 fax: (044) 280-26-03
e-mail: office@gp.gov.ua, web: www.gp.gov.ua
USREOU Code 00034051

_____ No. _____ To No. _____ dated _____

RULING
on refusal to satisfy motion

City of Kyiv «03» June 2026

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General Safaryan O.E., having examined the materials of criminal proceeding No. 22017000000000272 dated 06.07.2017,

ESTABLISHED:

The Office of the Prosecutor General received a motion dated 29.05.2026 No. 20260529/1 of attorney Vladyslav Miftakhutdinov in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 on determination by the prosecutor of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

In the course of its consideration, it was established that investigators of the Main Investigation Directorate of the Security Service of Ukraine on 06.07.2017 initiated pre-trial investigation in criminal proceeding No. 22017000000000272 based on indications of a crime provided for by Article 113 of the CC of Ukraine, assigned to the investigative jurisdiction of investigators of security bodies.

During the investigation, investigators of security bodies revealed a series of other crimes committed both by officials of JSC "Motor-Sich" and by other persons, and prosecutors made decisions on consolidation under twenty-seven episodes of criminal activity initiated under various parts of Articles 111, 111², 113, 114¹, 190, 191, 209, 212, 233, 258³, 219, 333, 358, 364 of the CC of Ukraine.

Following the results of the investigation of these criminal offenses from 2021 to 2024, accusations were brought against Volodymyr Pryadko under Article 367 of the CC of Ukraine, Petro Zaruba under Article 258³ of the CC of Ukraine, Petro Kononenko under Article 258³ of the CC of Ukraine, Vyacheslav Boguslayev under Articles 111¹, 111², 114¹, 258³ of the CC of Ukraine, and Oleh Dzyuba under Articles 111¹, 111², 258³ of the CC of Ukraine, with subsequent severance of materials of pre-trial investigation regarding these persons and adoption of final decisions on referral to court.

By investigators of the Main Investigation Directorate of the Security Service of Ukraine, from 24.01.2024 pre-trial investigation of the specified criminal proceeding has been carried out as part of a joint investigation team (JIT) with the French Republic and the Principality of Monaco regarding facts of legalization on the territory of the European Union of USD 650 million obtained by Oleksandr Boguslayev as a result of the sale of shares of JSC "Motor Sich" unlawfully acquired by Vyacheslav Boguslayev.

On the basis of evidence obtained by the joint investigation team, Vyacheslav Boguslayev on 28.04.2025 was notified of suspicion of misappropriation of shares of JSC "Motor Sich" in especially large amounts (Part 5 of Article 191 of the CC of Ukraine) with subsequent legalization (laundering) of proceeds from illegal

sale of these shares to PRC citizens by prior conspiracy with his son Oleksandr Boguslayev (Part 3 of Article 209 of the CC of Ukraine), who was notified of suspicion under Part 3 of Article 209 of the CC of Ukraine on the territory of the Principality of Monaco by JIT members on 30.04.2025.

The criminal offenses provided for by Part 5 of Article 191 of the CC of Ukraine and Part 3 of Article 209 of the CC of Ukraine were detected specifically during the investigation by investigators of security bodies of a series of criminal offenses under their investigative jurisdiction in criminal proceeding No. 22017000000000272.

In addition, in this very criminal proceeding, the Prosecutor General on 11.07.2019 had already made a decision to entrust the conduct of pre-trial investigation to investigators of the Main Investigation Directorate of the Security Service of Ukraine on the basis of Part 5 of Article 36 of the CPC of Ukraine due to its inefficiency.

Currently, pre-trial investigation is carried out not only regarding Vyacheslav Boguslayev and Oleksandr Boguslayev under Articles 191 and 209 of the CC of Ukraine, but also regarding facts of commission of crimes provided for by various parts of Articles 111, 111^1, 111^2, 113, 114^1, 190, 191, 209, 212, 219, 233, 258^3, 333, 358, 364 of the CC of Ukraine.

Vyacheslav Boguslayev, at the time accusations were brought against him under Articles 111^1, 111^2, 114^1, 258^3 of the CC of Ukraine and notice of suspicion under Articles 191, 209 of the CC of Ukraine, did not have the status of a People's Deputy of Ukraine.

The completion of the commission of the criminal offense incriminated against Vyacheslav Boguslayev provided for by Article 191 of the CC of Ukraine, as well as the commission of the criminal offense provided for by Article 209 of the CC of Ukraine, occurred after JSC "Motor Sich" completely left state ownership.

Therefore, a decision to entrust the conduct of pre-trial investigation in this criminal proceeding (which is taken taking into account the provisions of the CPC of Ukraine on investigative jurisdiction) has already been made, and grounds for determining another investigative jurisdiction have not been established.

Also, the Acting Prosecutor General on 30.09.2025 adopted a ruling on resolving the dispute over investigative jurisdiction in this criminal proceeding, which was determined to investigators of security bodies – the Main Investigation Directorate of the Security Service of Ukraine.

At the same time, the attorney in the motion requests to determine investigative jurisdiction in the criminal proceeding. Such a decision is taken in the form of a ruling and does not pertain to investigative or procedural actions, the right to petition for the conduct of which is granted to the defense pursuant to the provisions of Article 220 of the CPC of Ukraine.

On the basis of the above, guided by the requirements of Articles 36, 110, 220 of the CPC of Ukraine,

RULED:

1. To refuse attorney Vladyslav Miftakhutdinov, who acts in the interests of suspect Oleksandr Boguslayev in criminal proceeding No. 22017000000000272, in the satisfaction of the motion dated 29.05.2026 No. 20260529/1 on determination of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

2. To send a copy of the ruling to attorney Vladyslav Miftakhutdinov.

The ruling may be appealed during pre-trial investigation to an investigating judge in accordance with the procedure provided for by Articles 303–306 of the CPC of Ukraine, within ten days from the day of receipt by the person of a copy of the ruling.

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies



Oleksandr SAFARYAN

Previous version

РАДА VERKHOVNA RADA OF UKRAINE
Composition and structure

People's Deputy of Ukraine (V convocation)

Boguslayev Vyacheslav Oleksandrovych



from 25 May 2006 to 23 November 2007

Multi-mandate nationwide electoral district,

Party of Regions (No. in the list - 5)

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions (during the convocation)

- Head of the subcommittee on legislative support of state defense, defense-industrial complex, military and military-technical cooperation of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense
- Member of the deputy faction of the Party of Regions in the Verkhovna Rada of Ukraine
- Member of the group for interparliamentary relations with the People's Democratic Republic of Algeria
- Member of the group for interparliamentary relations with the Arab Republic of Egypt
- Member of the group for interparliamentary relations with the Great Socialist People's Libyan Arab Jamahiriya
- Member of the group for interparliamentary relations with the State of Israel
- Member of the group for interparliamentary relations with the People's Republic of China
- Member of the group for interparliamentary relations with the United Mexican States
- Member of the group for interparliamentary relations with the United Arab Emirates
- Member of the group for interparliamentary relations with the Republic of South Africa
- Member of the group for interparliamentary relations with the Republic of Belarus
- Member of the group for interparliamentary relations with the Republic of India
- Member of the group for interparliamentary relations with the Republic of Iraq
- Member of the group for interparliamentary relations with the Islamic Republic of Iran
- Member of the group for interparliamentary relations with the Republic of Lebanon
- Member of the group for interparliamentary relations with the Russian Federation
- Member of the group for interparliamentary relations with Romania
- Member of the group for interparliamentary relations with the Syrian Arab Republic
- Member of the group for interparliamentary relations with the Socialist Republic of Vietnam
- Member of the group for interparliamentary relations with the Republic of Turkey
- Member of the group for interparliamentary relations with the Czech Republic

All positions for the convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of work	Open Joint-Stock Company Motor Sich, Chairman of the Board
Party membership (at the time of elections)	Party of Regions
Resides in	village Soniachne-2, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	YES
Information at the time of election	Details

Activity

PREVIOUS VERSION

Voting

Registration

Transitions

Positions

Software and technical support · Department of Computerized Systems

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Previous version

РАДА VERKHOVNA RADA OF UKRAINE
Composition and structure

People's Deputy of Ukraine (VI convocation)

Boguslayev Vyacheslav Oleksandrovych



from 23 November 2007 to 12 December 2012

Multi-mandate nationwide electoral district,

Party of Regions (No. in the list - 11)

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions (during the convocation)

- Deputy Head of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense
- Member of the deputy faction of the Party of Regions in the Verkhovna Rada of Ukraine
- Member of the group for interparliamentary relations with the Democratic Socialist Republic of Sri Lanka
- Member of the group for interparliamentary relations with the People's Republic of China
- Member of the group for interparliamentary relations with the United Arab Emirates
- Member of the group for interparliamentary relations with the Republic of India
- Member of the group for interparliamentary relations with the Republic of Kazakhstan
- Member of the group for interparliamentary relations with the Russian Federation
- Member of the group for interparliamentary relations with the Federal Republic of Germany

All positions for the convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of work	Verkhovna Rada of Ukraine, People's Deputy of Ukraine of the V convocation
Party membership (at the time of elections)	Party of Regions
Resides in	village Soniachne, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	NO
Deputy of the previous convocation	YES (V convocation)
Information at the time of election	Details

Activity

PREVIOUS VERSION

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Registration

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РАДА VERKHOVNA RADA OF UKRAINE
Composition and structure

People's Deputy of Ukraine (VII convocation)

Boguslayev Vyacheslav Oleksandrovych



from 12 December 2012 to 27 November 2014

Electoral district No. 77, Zaporizhzhia region

Committee: Committee of the Verkhovna Rada of Ukraine on Industrial and Investment Policy

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions during the convocation

Position	Appointment date	Dismissal date
Deputy Head of the Committee of the Verkhovna Rada of Ukraine on Industrial and Investment Policy	25 December 2012	27 November 2014

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Software and technical support · Department of Computerized Systems

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РАДА VERKHOVNA RADA OF UKRAINE
Composition and structure

People's Deputy of Ukraine (VIII convocation)

Boguslayev Vyacheslav Oleksandrovych



from 27 November 2014 to 29 August 2019

Electoral district No. 77, Zaporizhzhia region

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Group "Volya Narodu"

Positions (during the convocation)

Member of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Member of the deputy group "Volya Narodu"

All positions for the convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of work	People's Deputy of Ukraine
Party membership (at the time of elections)	Non-partisan
Nominating entity	**Self-nomination**
Resides in	settlement Soniachne, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	NO
Deputy of the previous convocation	YES (V, VI, VII convocations)
Information at the time of election	Details

Activity

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SECURITY SERVICE OF UKRAINE
Main Investigation Directorate
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www.ssu.gov.ua e-mail: san@ssu.gov.ua EDRPOU Code 00034074

NOTICE
of suspicion

Kyiv city **"25" April 2025**

Senior Investigator for Particularly Important Cases of the 1st Department of the 1st Directorate of Pre-Trial Investigation of the Main Investigation Directorate of the SB of Ukraine, Lieutenant Colonel of Justice Denys Serhiiovych Romashkin, having established the existence of sufficient evidence to suspect a person of committing a criminal offense, pursuant to Arts. 42, 276, 277 and 278 of the CPC of Ukraine, -

NOTIFIED:

Viacheslav Oleksandrovych Bohuslaiev, citizen of Ukraine and the Russian Federation, who was born on 28.10.1938 in the city of Uralsk of the Republic of Kazakhstan, whose last place of residence was registered at the address: Zaporizhzhia Region, Soniachne settlement, Lisna Street, Building 2, detained in custody at the State Institution "Kyiv Pre-Trial Detention Center" at the address: Kyiv city, Dehtiarivska Street, 13,

that he is suspected of:

— misappropriation of property of another by abuse by an official of their official position, on an especially large scale, that is, of committing a criminal offense provided for by Part 5 of Art. 191 of the CC of Ukraine;

— committing, by prior conspiracy by a group of persons, actions aimed at concealing and disguising the illicit origin of funds obtained as a result of the commission of a socially dangerous illegal act preceding the legalization (laundering) of proceeds, transfer, change of their form (conversion), as well as the use of funds or other property obtained

as a result of the commission of a socially dangerous illegal act preceding the legalization (laundering) of proceeds on an especially large scale, that is, of a criminal offense provided for by Part 3 of Art. 209 of the CC of Ukraine.

Following the pre-trial investigation, it was established that by order of the Ministry of Aviation Industry of the USSR dated 17.12.1974 No. 247, the Charter of the Zaporizhzhia Production Association "Motorobudivnyk" named after the 50th Anniversary of the Great October Socialist Revolution was approved, which was approved in a new edition on 15.05.1989 (hereinafter – the Charter), and on 06.02.1991 order No. 298 was issued, which approved the Charter of the Zaporizhzhia Production Association "Motorobudivnyk".

Zaporizhzhia Production Association "Motorobudivnyk" named after the 50th Anniversary of the Great October Socialist Revolution was at least since 1974 under the direct subordination of the Ministry of Aviation Industry of the USSR and was established for the production of aviation equipment and other products with high consumer qualities at minimum costs.

From 1988, V.O. Bohuslaiev was appointed General Director of Zaporizhzhia Production Association "Motorobudivnyk", who since 1969 held managerial positions in the said association of factories, and from 1973 to 1988 held the position of director of the Volochysk Machine-Building Plant included in the structure of Zaporizhzhia Production Association "Motorobudivnyk".

By Resolution of the Verkhovna Rada of the Ukrainian SSR dated 06.06.1991 No. 1165-XII, it was established that state enterprises and organizations of Union subordination located on the territory of the republic pass into the jurisdiction of the Ukrainian SSR, and the Cabinet of Ministers of the Ukrainian SSR was instructed to approve the Regulation on the procedure for the transfer into the jurisdiction of the Ukrainian SSR of enterprises and organizations of Union subordination located on the territory of the republic.

By Resolution of the Cabinet of Ministers of the Ukrainian SSR dated 03.07.1991 No. 66, the Regulation on the procedure for the transfer into the jurisdiction of the Ukrainian SSR of state enterprises and organizations of Union subordination located on the territory of the republic was approved, according to which the organization of work and formalization of the transfer into the jurisdiction of the Ukrainian SSR of state enterprises and organizations are carried out by the State Property Fund of the Ukrainian SSR.

By Resolution of the Cabinet of Ministers of Ukraine dated 19.08.1991 No. 158 (hereinafter – CMU Resolution No. 158), the State Property Fund of Ukraine (hereinafter – the SPFU) was actually founded, which was assigned the tasks of organizing work and formalizing the transfer into the jurisdiction of the Ukrainian SSR of state enterprises and organizations of Union subordination, determining forms and procedures for changing state ownership, supervising the effectiveness of use and implementation of corporatization of state property of the UkrSSR. Decisions of the SPFU adopted within the scope of its powers are mandatory for execution by ministries and departments of the UkrSSR, and other organizations

By the Executive Committee of the Shevchenkivskyi District Council of People's Deputies of Zaporizhzhia Region, order dated 15.11.1991 No. 393-r was issued regarding the registration of the state enterprise "Motor Sich", as well as its Charter dated 01.11.1991 approved by the Head of Derzhoboronprommash.

Under the Charter, "Motor Sich" acted as a state enterprise based on state ownership of Ukraine, directly subordinated to Derzhoboronprommash of Ukraine and was formerly named Zaporizhzhia Production Association "Motorobudivnyk" named after the 50th Anniversary of the Great October Socialist Revolution as part of the Ministry of Aviation Industry of the USSR, with the same subject of activity.

From the beginning of its founding, V.O. Bohuslaiev was appointed General Director of SE "Motor Sich", who at that time had already held managerial positions in various structural divisions for more than 22 years, having acquired corresponding influence and capabilities associated with his position. The state enterprise operated on the command-administrative principle of management, one-man leadership, and strict centralization of the decision-making system regarding the essence of its operation. Management of the enterprise is carried out by its head, who independently decides all issues of its activity, with the exception of those attributed by the charter to the competence of the Property Management Body and other governing bodies, etc. He also bears full responsibility for the activity of the enterprise.

After the privatization of the enterprise and appointment of V.O. Bohuslaiev in 1994 as head of the newly created joint-stock company, by the general meeting of shareholders on 11.03.1999 he was elected Chairman of the Board – General Director of Open Joint-Stock Company "Motor Sich". By the general meeting of shareholders on 16.03.2006, V.O. Bohuslaiev was elected Chairman of the Board of Directors of this same enterprise, and already on 28.04.2006 by decision of the Board of Directors he was formally dismissed from his position, since from 25.05.2006 to 29.08.2019 he exercised the powers of a People's Deputy of Ukraine of the 5th–8th convocations, actually continuing to manage the enterprise belonging to him, using for this purpose the capabilities of his position, being Deputy Chairman of the Verkhovna Rada of Ukraine Committee on National Security and Defense, as well as a member of the group on interparliamentary relations with the Democratic Socialist Republic of Sri Lanka, the Republic of Kazakhstan, the Republic of India, the United Arab Emirates, the People's Republic of China, the Federal Republic of Germany, the Russian Federation.

From 16.10.2019 to 10.02.2023, V.O. Bohuslaiev was President of Joint-Stock Company "Motor Sich", General Designer for the creation and modernization of helicopter equipment.

Thus, V.O. Bohuslaiev had full sole factual control over all activities of Joint-Stock Company "Motor Sich" from 1988 to 2023.

At the same time, from 1988 to 1994, all property of Zaporizhzhia Production Association "Motorobudivnyk" and SE "Motor Sich" established on its basis

was under the direct authority of its head V.O. Bohuslaiev, who disposed of it on the basis of the Charter and normative acts specified below.

The Law of Ukraine "On Privatization of Property of State Enterprises" dated 04.03.1992 No. 2163-XII (hereinafter – Law No. 2163-XII) provided that state policy in the sphere of privatization is implemented by the SPFU, privatization bodies of the Republic of Crimea, and administrative-territorial units. Privatization is defined as the alienation of property that is in nationwide, republican (Republic of Crimea), and municipal ownership, in favor of natural persons and non-state legal entities. It is carried out on the basis of the principle of legality and on a compensated basis using privatization papers.

The SPFU adopts a decision on the privatization of an object based on the consideration of applications and notifies the applicant and the labor collective of the enterprise being privatized thereof. Within one month from the date of adoption of the decision on privatization of an object, the SPFU approves the composition of the commission on privatization of the object and establishes the deadline for submission of the privatization plan. This deadline must not exceed two months from the date of approval of the commission's composition.

The draft plan developed by the privatization commission is submitted for consideration to the regional branches of the SPFU or local privatization bodies, which are obliged within 10 days to consider the submitted drafts, approve the privatization plan, and bring it to the attention of interested persons.

In order to implement the provisions of Law No. 2163-XII regarding policy in the sphere of privatization, by Resolution of the Verkhovna Rada of Ukraine dated 07.07.1992 No. 2558-XII, the Provisional Regulation on the SPFU (hereinafter – Provisional Regulation) was approved, as a state body that implements state policy in the sphere of privatization of state property, acts as a lessor of property complexes that are nationwide property.

The SPFU has the right, in particular, to conduct an inventory of nationwide property that, in accordance with the State Privatization Program, is subject to privatization, and also to carry out audit checks of the efficiency of its use.

The Regulation on inventory of property of state enterprises being privatized, as well as property of state enterprises and organizations being leased, approved by Resolution of the Cabinet of Ministers of Ukraine dated 02.03.1993 No. 158 (hereinafter – Regulation No. 158), provided that the inventory of property of state enterprises being privatized is conducted in accordance with the decision of state privatization bodies.

To conduct an inventory of property of state enterprises being privatized, the state privatization body approves the composition of the inventory commission. The protocol of the inventory commission on the results of the inventory with proposals on regulating inventory differences is approved by the state privatization body or lessor within a 5-day period.

The Regulation on Privatization Commissions, approved by Order of the Chairman of the SPFU dated 08.09.1992 No. 371, provided that the composition of the commission is approved

by decision of the relevant privatization body. By this decision, the chairman of the commission is appointed and the deadline for submission of the privatization plan of the object is established.

Pursuant to the State Program for Privatization of Property of State Enterprises, by Resolution of the Cabinet of Ministers of Ukraine dated 07.12.1992 No. 686, the Procedure for transformation of state enterprises into open joint-stock companies in the process of privatization was approved (hereinafter – Procedure No. 686), which provided that the decision on transformation of a state enterprise into an open joint-stock company is adopted by the state privatization body on the basis of the privatization plan of this enterprise within a 10-day period from the date of its approval.

In order to apply a unified procedure for preparing documentation on valuation of the value of privatization and lease objects, by Order of the Chairman of the SPFU dated 09.03.1993 No. 117, the Instruction on valuation of the value of privatization and lease objects was approved (hereinafter – Instruction No. 117), which provided that upon submission of the privatization commission, the state privatization body issues an order on the establishment of an inventory commission.

Paragraph 6.2 of the said Instruction established that the valuation of the value of property of a state enterprise as an integral property complex is carried out within a 10-day period from the date of submission of documentation on the results of the inventory. The results of the valuation are reflected in an act of the established template and approved by the relevant privatization body.

By Directive of the Cabinet of Ministers of Ukraine dated 14 December 1991 No. 399-r (hereinafter – CMU Directive No. 399-r), the list of enterprises on which preparatory work on destatization and privatization begins was approved, which included 42 enterprises, including Zaporizhzhia Production Association "Motorobudivnyk", the legal successor of which is SE "Motor Sich".

Paragraph 1 of CMU Directive No. 399-r instructed the Ministry of Ukraine for Destatization of Property and Demonopolization of Production, as well as the SPFU, to begin preparatory work on destatization and privatization of enterprises, associations, and organizations according to the annex, meaning to carry out, among other things: creation of privatization commissions with the participation of representatives of the Ministry of Ukraine for Destatization of Property and Demonopolization of Production and the State Property Fund of Ukraine, the relevant branch body of state management, the labor collective and administration, local Councils of People's Deputies, financial bodies; conducting an inventory of productive and non-productive funds of enterprises taking into account the results of the inventory; valuation of property subject to privatization, using various methods: by replacement value taking into account wear and tear, inflation, potential profitability of enterprises, and market prices for their property.

Pursuant to this same Directive and in connection with receipt from SE "Motor Sich" of an application for privatization, protocol of the conference of the labor collective, and information on the main indicators of production and economic activity, by joint order of the SPFU dated 20.03.1992 No. 79 and the Ministry

of Ukraine for Destatization of Property and Demonopolization of Production dated 21.03.1992 No. 21, the Privatization Commission was created, which included General Director of SE "Motor Sich" V.O. Bohuslaiev.

Acting in order to test the mechanism of privatization of large enterprises of the machine-building industry of Ukraine, on 31.05.1993 V.O. Bohuslaiev, as General Director of SE "Motor Sich", sent a corresponding letter No. otyz-10059 to Prime Minister of Ukraine L.D. Kuchma requesting permission to corporatize and privatize SE "Motor Sich" by way of experiment.

Having obtained the consent of the Prime Minister of Ukraine in the form of a written resolution on the request, by order of the SPFU dated 16.06.1993 No. 18-DP, a decision was made to issue permission for the privatization of SE "Motor Sich" and to create a privatization commission.

Thereafter, General Director of SE "Motor Sich" V.O. Bohuslaiev, by letter on letterhead 017913 without date and number, proposed his candidacy as one of the members of the privatization commission, and on 26.07.1993 by letter No. BI/13006 submitted his own candidacy for inclusion in the inventory commission of the enterprise as general director.

The Regulation on Privatization Commissions, approved by Order of the SPFU dated 08.09.1992 No. 371 (hereinafter – Regulation No. 371), provided for its main tasks in the form of: control over the conduct of the inventory of property of the privatization object; development of the privatization plan of the object and submission thereof for approval to the privatization body; valuation of value and determination of the initial price of the privatization object, the size of the statutory fund of the economic company, etc.

At the same time, on 27.08.1993, Chairman of the SPFU V.V. Priadko, negligently treating the performance of his official duties, not complying with the deadlines established by order No. 18-DP dated 16.06.1993, signed order No. 225-PK on the creation of the commission for privatization of SE "Motor Sich", which established the deadline for submitting the draft privatization plan of the object for approval to the Fund – 2 months from the date of signing the order. The said order approved the composition of the commission of eight persons, among whom was General Director of SE "Motor Sich" V.O. Bohuslaiev.

Regulation No. 158 formulated the main purpose of the inventory, which is the determination of actual availability and condition of the property of the inventory object, verification of actual availability of property with accounting records data, settlement of inventory differences, and reflection of inventory results in the transfer balance sheet.

Pursuant to clause 2.2 of Instruction No. 117, upon submission of the privatization commission, the Fund, as the state privatization body, issues an order of the established template on the creation of the inventory commission. In this order, the deadline for submission by the inventory commission to the privatization commission of inventory results is established: the protocol, inventory records, and transfer balance sheet.

Clause 5.6 of Instruction No. 117 provided that on the basis of the protocol on general results of the inventory and inventory forms, a transfer accounting balance sheet is drawn up (in two

copies), which is signed by the chief accountant and the head of the enterprise.

In 1993, the decline of Ukraine's economy amounted to not less than 14% in annual terms, and prices increased up to 10,256%, which meant the onset of a sharp daily increase in the consumer price index (in particular, 121.7% for August, 180.3% for September, 166.1% for October).

In order to overcome the indicated negative phenomena in the economy and create favorable conditions for improving the financial condition of enterprises, institutions, and organizations of all forms of ownership, the Cabinet of Ministers of Ukraine adopted the resolution "On conducting indexation of fixed assets in the national economy of Ukraine" dated 03.08.1993 No. 598 (hereinafter – Resolution No. 598).

In execution of Resolution No. 598, by joint letter of the Ministry of Statistics, Ministry of Economy, Ministry of Finance together with the SPFU dated 04.08.1993 No. 07/01-04/62, the Procedure for indexation of the book value of fixed assets of enterprises, organizations, and institutions in connection with price increases was established (hereinafter – Procedure No. 07/01-04/62).

The said Procedure provided that indexation is carried out annually after the reporting year as of January 1 of the following year, and in 1993 as of August 1. The value of existing buildings, structures, transmission devices, machinery and equipment, vehicles, production and household inventory, working and productive livestock, perennial plantings, and other types of fixed assets was subject to recalculation.

The direct work on indexation of the value of fixed assets is carried out by a commission specially created at the enterprise under the chairmanship of its head, who bears responsibility for its timely conduct, as well as for the completeness and correctness of determining the results of indexation. The enterprise commission draws up a statement of recalculation of the book value of fixed assets and their depreciation, into which necessary data is entered from analytical accounting registers, and on the basis of which records of indexation results are made in accounting.

Changes in the value of fixed assets and the amount of depreciation are reflected in inventory cards of fixed assets accounting or in other registers of analytical accounting.

Chairman of the SPFU V.V. Priadko, negligently treating his official duties, signed order dated 30.08.1993 No. 234-IK on the creation of the inventory commission, in which, in violation of Regulation No. 158 and clause 2.3 of Instruction No. 117, having appointed General Director of SE "Motor Sich" V.O. Bohuslaiev as its chairman as a representative of the SPFU, which he never was, without specifying the procedure and deadlines for submission by the inventory commission of the transfer balance sheet for approval, in which information on the financial condition of the enterprise based on inventory results must be reflected.

Negligently treating the official duties assigned to him, Chairman of the SPFU V.V. Priadko (the said person was released from criminal liability under Part

2 of Art. 167 of the CC of Ukraine (in the edition of 1960), due to lapse of statute of limitations, by ruling of Pecherskyi District Court of Kyiv City dated 30.04.2021) adopted an illegal decision, which actually created conditions and opportunities for unhindered preparation and subsequent submission of inaccurate results of the inventory of property of SE "Motor Sich" without its actual conduct and without applying indexation.

By the said order of V.V. Priadko, the inventory commission was instructed to conduct a full inventory in accordance with CMU Resolution dated 03.08.1993 No. 598 and submit to the SPFU for approval the protocol on inventory results (inventory forms) as of 01.09.1993.

Subsequently, at a time not established by the pre-trial investigation, but not later than 30.08.1993, under circumstances not precisely established by the pre-trial investigation, V.O. Bohuslaiev, being aware of the opportunities artificially created by Chairman of the SPFU V.V. Priadko for the privatization of SE "Motor Sich" at undervalued prices, used such circumstances in his personal interests aimed at embezzling state property, influencing directly, as chairman of the inventory commission and member of the privatization commission, the course and results of the privatization of the state enterprise fully controlled by him.

To implement his intent to embezzle state property on an especially large scale, V.O. Bohuslaiev organized the undervaluation of the size of the statutory fund of the privatization object as a result of failure to conduct mandatory indexation of the book value of fixed assets, non-inclusion of the indexation amount in the valuation of property value, exclusion of the value of property subject to privatization, using for this purpose his status as chairman of the privatization commission and his administrative influence as the sole head of the state enterprise being privatized.

Pursuant to the aforementioned order of Priadko V.V., by persons not precisely established by the pre-trial investigation under the direction of Bohuslaiev V.O., who acted with an already formed criminal intent aimed at embezzlement of state property, under circumstances not precisely established by the pre-trial investigation during the period from 30.08.1993 to 05.11.1993, inventory materials of SE "Motor Sich" were prepared, which consisted of inventory list No. 1 of fixed assets, inventory list No. 2 of inventory holdings (supplies and expenditures), inventory list No. 3 of inventory holdings (finished products), summary comparison statement of inventory results of property of the enterprise "Motor Sich", and the enterprise balance sheet as of 01.08.1993, and not as of 01.09.1993, which, taking into account the rapid growth of the consumer price index, enabled privatization at prices that no longer substantially corresponded to market prices and were significantly understated.

Inventory list No. 1 of fixed assets, inventory list No. 2 of inventory holdings (supplies and expenditures), and inventory list No. 3 of inventory holdings (finished products) were compiled as of 01.08.1993 in non-compliance with the standard forms of primary accounting documentation for inventory approved by Resolution of the USSR State Committee on Statistics dated 28.12.1989 No. 241, as provided for in clause 13 of Regulation No. 158 and clause 5.2 of Instruction No. 117.

In particular, in inventory list No. 1 of fixed assets, drawn up according to form Inv-1, data regarding the name and brief description, year of manufacture (construction), number (inventory, factory, passport), quantity (actual and according to accounting records), total quantity in the list (sequential numbers), total number of units, and actual sum are missing. Also missing are signatures of persons responsible for the safekeeping of fixed assets, signature of the person who verified the data in the list, and decodings of positions and full names of commission members.

In inventory list No. 2 of inventory holdings (supplies and expenditures) and inventory list No. 3 of inventory holdings (finished products), drawn up according to form Inv-3, data regarding the name of inventory holdings (type, sort, group, etc.), code, unit of measurement, price, quantity (actual and according to accounting records), and total number of units actually in the list are missing. Missing are signatures of persons responsible for the safekeeping of fixed assets, signature of the person who verified the data in the list, and decodings of positions and full names of commission members.

At the same time, in inventory list No. 1 of fixed assets it is indicated that the inventory was conducted on the basis of order dated 27.07.1993 No. 304, as of 01.08.1993, commenced on 01.08.1993 and completed on 20.08.1993.

In inventory list No. 2 of inventory holdings (supplies and expenditures) it is indicated that the inventory was conducted on the basis of order dated 27.07.1993 No. 304, as of 01.08.1993, commenced on 01.08.1993 and completed on 17.08.1993.

In inventory list No. 3 of inventory holdings (finished products) it is indicated that the inventory was conducted on the basis of order dated 27.07.1993 No. 304, as of 01.08.1993, commenced on 30.07.1993 and completed on 01.08.1993.

In the summary comparison statement of inventory results of property of SE "Motor Sich", it is stated that stock-taking and inventory of actual availability of fixed and circulating assets was carried out in a single day, 01.08.1993, on the basis of order of SE "Motor Sich" dated 27.07.1993 No. 304 and order dated 30.08.1993 No. 234-IK, which contradicts inventory lists No. 1 and No. 2, as well as the content of order No. 234-IK dated 30.08.1993 itself, and testifies to its preparation and signing by the inventory commission earlier than the completion of the property inventory.

Thus, inventory list No. 1 of fixed assets, inventory list No. 2 of inventory holdings (supplies and expenditures), inventory list No. 3 of inventory holdings (finished products), and summary comparison statement of property inventory results for the enterprise "Motor Sich", the compilation of which was organized by V.O. Bohuslaiev in non-compliance with the established content, contain not only inaccurate information regarding the dates and grounds for conducting the property inventory, but also do not reflect the results of the inventory of property of SE "Motor Sich" as of 01.09.1993.

In addition, order No. 234-IK dated 30.08.1993 imposed on the inventory commission the duty to conduct a full inventory as of 01.09.1993 in accordance with the requirements of Resolution No. 598.

According to the requirements of Resolution No. 598 and Procedure No. 07/01-04/62, SE "Motor Sich" in the period from 03.08.1993 to 10.09.1993 was also required to conduct indexation of the book value of fixed assets and depreciation deductions as of 01.08.1993, which was intentionally not carried out by the privatization commission.

According to the balance sheet of SE "Motor Sich" drawn up as of 01.08.1993, the initial value of fixed assets at the end of the reporting period amounted to 440,531,703,000 karbovanets, which equaled the value of actual availability of fixed assets of SE "Motor Sich" contained in inventory list No. 1.

Thus, inventory list No. 1 of fixed assets, inventory list No. 2 of inventory holdings (supplies and expenditures), inventory list No. 3 of inventory holdings (finished products), and the summary comparison statement of property inventory results for the enterprise "Motor Sich" were drawn up without taking into account the requirements of Resolution No. 598 and Procedure No. 07/01-04/62, and contain information on the value of property of SE "Motor Sich" without calculation of mandatory indexation.

In order to conceal non-compliance with the requirements of Resolution No. 598 and Procedure No. 07/01-04/62 consisting in failure to take into account indexation of the book value of fixed assets during the inventory of SE "Motor Sich", which would subsequently create conditions for understating the value of enterprise property during its privatization, knowingly false information was entered into the protocol on general results of the inventory that the inventory was conducted taking into account indexation of fixed assets in accordance with Resolution No. 598.

In addition, in the said protocol it was stated that in accordance with order No. 234-IK dated 30.08.1993, the inventory commission reviewed and approved the results of the inventory as of 01.08.1993, and not as of 01.09.1993, which contradicts the specified order.

In contravention of the requirements of the Methodology for Valuation of Value of Privatization Objects approved by Resolution of the Cabinet of Ministers of Ukraine dated 08.09.1993 No. 717 (hereinafter – Methodology No. 717), SE "Motor Sich" did not form a transfer balance sheet that was to be developed based on the results of the conducted inventory and would serve as the basis for carrying out the property valuation.

Thereafter, V.O. Bohuslaiev, being aware of the inaccuracy and non-conformity of the results of the inventory of property of SE "Motor Sich", conscious of the lack of actual conduct of the inventory as of 01.09.1993 and failure to apply indexation in accordance with Resolution No. 598 and Procedure No. 07/01-04/62, in the absence of a transfer balance sheet, under circumstances not established, in violation of clauses 2 and 50 of Regulation No. 158, organized the compilation and signing of the protocol of the meeting of the inventory commission on the results of the inventory of property of SE "Motor Sich".

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According to the said protocol, the value of fixed assets of SE "Motor Sich" as of 01.08.1993 amounted to 440,531,710,000 karbovanets, residual value of fixed assets – 331,779,034,000 karbovanets, intangible assets – 1,910,000 karbovanets, inventory holdings minus depreciation and markup – 59,737,388,000 karbovanets, financial assets and accounts receivable – 21,453,806,000 karbovanets.

On the basis of inventory materials of the knowingly incorrectly conducted inventory as of 01.08.1993, and not as of 01.09.1993, without taking into account mandatory indexation and without the availability of a transfer balance sheet drawn up not earlier than 01.09.1993, the privatization commission under the influence of V.O. Bohuslaiev in the period from 05.11.1993 to 30.12.1993 conducted valuation of the privatization object and drew up an act of valuation of the value of the integral property complex of SE "Motor Sich".

The estimated value of property of SE "Motor Sich" was determined in the amount of: book value of fixed assets 440,531,703 thousand karbovanets; value of integral property complex 431,318,606 thousand karbovanets; value of excluded property 225,717,547 thousand karbovanets; value of property subject to privatization 218,188,950 thousand karbovanets; size of statutory fund of joint-stock company 218,188,950 thousand karbovanets.

Continuing to act in his own interests aimed at embezzling state property on an especially large scale and its subsequent privatization at an understated value, V.O. Bohuslaiev, as chairman of the inventory commission and member of the privatization commission, organized the inclusion in the list of property subject to a special privatization regime: equipment, buildings and structures not used as a result of conversion valued at 141,410,078,000 karbovanets; property of timber harvesting plot "Ileza" valued at 20,815,000 karbovanets; mothballed fixed assets related to termination of production of military equipment valued at 2,149,722,000 karbovanets.

The said assets did not have the status of objects of construction in progress, financial investments in securities and shares of other enterprises, business companies, banks, interest bonds and loans or contributions to statutory funds of joint ventures, and therefore as a result of their assignment to the list of property subject to a special privatization regime, the property value of the integral property complex of SE "Motor Sich" and its statutory fund were unlawfully reduced by 143,580,615,000 karbovanets.

Having achieved the preparation by the inventory and privatization commissions of the aforementioned package of privatization documents, V.O. Bohuslaiev, reliably knowing and conscious of the conduct of the valuation of the integral property complex of SE "Motor Sich" on the basis of inaccurate data, without taking into account mandatory indexation of fixed assets, without the availability of a transfer balance sheet, unlawful undervaluation of property of the integral property complex, exclusion of part of property as not subject to privatization, under circumstances not precisely established, secured from the Chairman of the SPFU V.V. Priadko the signing on 31.12.1993 of order No. 272-ROM, which approved the act of valuation of the value of the integral property complex of SE "Motor Sich" at a substantially understated value.

The approved valuation act served as the basis for drawing up the privatization plan in accordance with Article 14 of the Law of Ukraine "On Privatization of Property of State Enterprises" dated 04.03.1992 and the Regulation on the Privatization Plan approved by Order of the SPFU dated 10.11.1992 No. 476 (hereinafter – Regulation No. 476).

To implement the scheme of unlawful privatization of JSC "Motor Sich", members of the labor collective, under the leadership of V.O. Bohuslaiev, already on 18.11.1993 entered into an agreement on joint activity, by which they founded a buyers' association as a legal entity (registered on 06.01.1994) whose purpose of activity was the buyout of the enterprise property. V.O. Bohuslaiev was included in the board of the buyers' association, and was elected its chairman. Thus, V.O. Bohuslaiev created conditions for subsequent buyout of enterprise shares at an understated price and excluded the possibility of control over this process by third parties.

In the period from 30.12.1993 to 04.05.1994, on the basis of the valuation act of the integral property complex of SE "Motor Sich", the privatization commission prepared the privatization plan, which on 04.05.1994 was approved by the SPFU by signing order No. 28-AT "On approval of the privatization plan and transformation into a joint-stock company of state enterprise 'Motor Sich'", and by the Executive Committee of Zaporizhzhia City Council of People's Deputies on 25.05.1994 order No. 708-r was issued on state registration of joint-stock company "Motor Sich" with issuance of Certificate No. 199901 series AOO.

The Ministry of Finance of Ukraine on 17.06.1994 issued Certificate of registration of securities issue of JSC "Motor Sich" in the amount of 218,188,950,000 karbovanets, including ordinary registered shares in the number of 2,077,990 units with a nominal value of 105,000 karbovanets.

The amount of material damage (losses) caused to the state as a result of non-receipt by the state budget of funds from the privatization of property of SE "Motor Sich" in connection with the unlawful exclusion from total value of the integral property complex of property subject to privatization, failure to conduct mandatory indexation of book value of fixed assets as of 01.08.1993, violations committed by the inventory commission under the chairmanship of V.O. Bohuslaiev and undervaluation of estimated (inventory) value, amounts as of 17.06.1994 (date of issuance of certificate of registration of securities (shares) issue) to 93,528,150 UAH, and as of 2021 taking into account consumer price indices (inflation) amounts to 18.05 billion UAH.

Taking into account the above, V.O. Bohuslaiev, taking advantage of the negligent attitude of Chairman of the SPFU V.V. Priadko towards official duties assigned to him, pursuing his own mercenary interests aimed at embezzling state property on an especially large scale through unlawful privatization at an understated value with subsequent possession of enterprise property by abuse of official position, being chairman of the inventory commission, member of the privatization commission, chairman of the board of the buyers' association of enterprise shares and head of SE "Motor Sich", in the period from 27.08.1993 to 04.05.1994 achieved the preparation, compilation, and signing of the package of privatization documents,

including four Inventory Lists of the inventory commission, the Protocol on results of inventory of property of SE "Motor Sich", the Valuation Act of the integral property complex of SE "Motor Sich", the Privatization Plan of SE "Motor Sich", which contained inaccurate data regarding true market value of the privatization object, did not take into account mandatory indexation of fixed assets, without availability of a transfer balance sheet, having excluded in doing so part of property as not subject to privatization. The package of privatization documents organized by V.O. Bohuslaiev with knowingly inaccurate data regarding value of SE "Motor Sich" became the basis for its unlawful privatization at prices significantly lower than market prices with transformation of the enterprise into JSC "Motor Sich". The indicated circumstances implemented the aforementioned intent of V.O. Bohuslaiev, who after unlawful privatization organized subsequent buyout by him, as a natural person, and by legal entities founded by him, of shares of JSC "Motor Sich" from nominal owners at (concessional) prices that were significantly below market prices.

Realizing that buyout of shares of the newly created JSC "Motor Sich" was impossible without maintaining subsequent sole control over the enterprise, V.O. Bohuslaiev on 12.05.2014 [Note: in original text typed "12.05.2014"] applied by letter No. op/4343 proposing to appoint himself Chairman of the Board of JSC "Motor Sich", and to include predetermined persons controlled by him in its composition. On the same day, V.O. Bohuslaiev sent letter No. op/4342 to the SPFU proposing inclusion of persons controlled by him in the revision commission of the enterprise, and on 17.05.1994 by letter No. op/4344 V.O. Bohuslaiev proposed forming the Supervisory Board of the enterprise exclusively from persons proposed by him.

Already on 20.05.1994, by Order of the SPFU No. 24-PAT, the personal composition of the Supervisory Board, Board, and Revision Commission of the newly created JSC "Motor Sich" was approved with the composition of those persons proposed by Bohuslaiev V.O. Bohuslaiev V.O. was appointed Chairman of the Board and simultaneously General Director, who, to complete the implementation of his criminal intent, needed only to buy out shares from the labor collective at previously understated prices from unlawful privatization.

In this manner, V.O. Bohuslaiev gained control over property embezzled as a result of unlawful privatization, having created conditions for subsequent final taking possession of it and converting it to his own benefit.

For this purpose, on 17.05.1994, V.O. Bohuslaiev proposed that the SPFU form a commission for sale of shares of JSC "Motor Sich" from among subordinates and controlled persons who worked at the given enterprise.

According to proposals of V.O. Bohuslaiev, on 20.05.1994 the SPFU adopted order No. 36-KPA regarding the sale of shares of JSC "Motor Sich", which formed a commission for their sale headed by V.O. Kazanskyi and other persons, who in their majority were controlled by V.O. Bohuslaiev. The said commission systematically held its meetings at which issues of closed and open sale of shares

of the joint-stock company, settlements for them with privatization certificates, etc., were decided.

Along with this, controlling the progress of sale and buyout of shares of JSC "Motor Sich" in his own interests, having direct influence on work of the commission for sale of shares of the enterprise created on 20.05.1994, being chairman of the board of the buyers' association of shares, pursuing the intent to take possession of the largest possible block of shares in order to acquire legal possibilities of decisive influence on its activity already as the sole owner, on 24.02.1995 V.O. Bohuslaiev held the first general meeting of shareholders of JSC "Motor Sich" in the status of both general director and chairman of the board. At the time of this meeting, 64.4% of shares were sold to 52,000 persons, 90% of whom were employees of the enterprise.

Following the results of work of the first general meeting of shareholders of JSC "Motor Sich", it was decided to elect V.O. Bohuslaiev as chairman of its board.

To him, already on 09.02.1995 by the general meeting of representatives of the buyers' association of enterprise "Motor Sich", the management right of a single indivisible block of shares of the strategic investor (27% of shares) was transferred. The management right of a single indivisible block of shares intended for sale to a foreign investor (17% of shares) was transferred to the management of V.H. Kazanskyi, who held the position of deputy to V.O. Bohuslaiev and was directly subordinate to him in work of the enterprise.

Having gained full control over activity of the already private joint-stock company, being both its general director and chairman of the board, acting as chairman of the board of the buyers' association, managing a single indivisible block of shares of the strategic investor, having direct influence on management of a single indivisible block of shares intended for sale to a foreign investor, continuing to act in his own mercenary interests, taking advantage of results of unlawful privatization of SE "Motor Sich" at an undervalued market price, in the period from 17.06.1994 to 21.12.2015, V.O. Bohuslaiev, being in an unestablished location, directly and indirectly concentrated not less than 65% of shares of JSC "Motor Sich" created on 25.05.1994, by purchasing them from the labor collective at a value understated by him during pre-privatization preparation and formalizing them for dummy persons, legal entities registered on the territory of Ukraine, and non-resident companies, in particular controlled by his son Oleksandr Viacheslavovych Bohuslaiev.

In addition, V.O. Bohuslaiev used his official position to exert pressure on enterprise employees for them to sell shares exclusively to companies controlled by V.O. Bohuslaiev and O.V. Bohuslaiev. Violation of rules established by him could lead to dismissal of the employee from JSC "Motor Sich".

Thus, in the period from 17.06.1994 to 13.03.2000, Bohuslaiev V.O. personally acquired 56,926 shares of JSC "Motor Sich", which constituted 2.739% of the total number.

Through a controlled broker on the securities market, LLC "Firm 'Motor-Diler'", owned 100% by JSC "Motor Sich", V.O. Bohuslaiev carried out

the purchase of shares of JSC "Motor Sich" from LLC "Firm 'Motor-Diler'", which in turn bought them out from the labor collective of JSC "Motor Sich" and distributed them among various companies, in connection with which he owned various numbers of shares of JSC "Motor Sich".

Thus, as of 25.04.2002, he owned 348,455 shares (16.76885%), and as of 10.02.2015 – 316,932 shares (15.2519%).

Prior to conclusion of the agreement with representatives of the People's Republic of China regarding the sale of all shares belonging to him and companies controlled by him of JSC "Motor Sich", V.O. Bohuslaiev as of 06.10.2015 directly controlled 328,007 shares (15.7848%), of which he sold 311,699 shares (15%) to Chinese companies.

Companies controlled by V.O. Bohuslaiev, Business House Helena A.G. (Panama, code 425217) and LLC "Vostochno-Evropeyskiy Alyans" (RF, code 1047796704), in the period from 17.06.1994 to 17.06.2005, acquired ownership of 157,186 shares (Business House Helena A.G. – 74,994 shares (3.61%), LLC "Vostochno-Evropeyskiy Alyans" – 82,192 shares (3.955%)).

In the period from 17.06.2005 to 25.01.2006, Business House Helena A.G. increased its holding of shares of JSC "Motor Sich" to 125,880 units (6.058%).

From 16.06.2006 to 22.03.2007, through purchase of shares of JSC "Motor Sich" from Bartens Alliance Ltd (USA, code 2003113035), V.O. Bohuslaiev increased the share controlled by him by 546,440 shares, namely: Business House Helena A.G. increased the share by 69,463 shares and came to hold 195,343 shares (9.4006%); LLC "Motor-Interkoms" (code 32372401) acquired ownership of 201,565 shares (9.7%); PrJSC "TC 'Olena'" (code 31051118) acquired ownership of 193,220 shares (9.2984%); LLC "Vostochno-Evropeyskiy Alyans" increased its share to 164,384 shares (7.9107%).

Company controlled by V.O. Bohuslaiev, Enfields Trade & Capital Corp. (Panama, code 542042), from 22.03.2007 to 24.01.2008 acquired ownership of 10,646 shares of JSC "Motor Sich" (0.51232%).

Company controlled by V.O. Bohuslaiev, Granum Corporation (Panama, code 538069), from 27.03.2009 to 01.02.2010 acquired ownership of 201,565 shares of JSC "Motor Sich" (9.7%), through purchase of 196,743 shares from Bartens Alliance Ltd and other sellers.

From 16.03.2012 to 03.04.2012, company Enfields Trade & Capital Corp. increased its share of ownership of shares of JSC "Motor Sich" and came to hold 26,240 shares (1.26276%).

In the period from 03.04.2012 to 12.02.2013, V.O. Bohuslaiev redistributed shares of JSC "Motor Sich" from LLC "Vostochno-Evropeyskiy Alyans" to Business House Helena A.G., after which LLC "Vostochno-Evropeyskiy Alyans" withdrew from shareholders of JSC "Motor Sich", and Business House Helena A.G. increased its share by 164,384 shares and came to hold 359,727 shares (17.3113%).

Company controlled by V.O. Bohuslaiev, Waldo Trade Ltd. (British Virgin Islands, code 1535383), from 16.03.2012 to 03.04.2012 acquired ownership of 3,261 shares of JSC "Motor Sich" (0.15693%), and subsequently by 12.02.2013 increased the number to 43,511 shares (2.0939%).

In the period from 31.03.2014 to 01.09.2014, Waldo Trade Ltd. reduced its holding of shares of JSC "Motor Sich" by 16,425 shares by selling them to company Tabernus Corp (Panama, code 792582) controlled by V.O. Bohuslaiev, as a result of which Waldo Trade Ltd. came to control 27,086 shares (1.3035%), and Tabernus Corp – 16,425 shares (0.7904%).

In addition, Enfields Trade & Capital Corp. in the period from 03.04.2012 to 12.02.2013 increased the number of shares in JSC "Motor Sich" to 64,733 (3.1152%).

Thus, in the period from 17.06.1994 to 01.09.2014, non-resident companies and legal entities in Ukraine (whose owner was other non-resident companies) controlled by V.O. Bohuslaiev, as the actual beneficial owner, formed a block of shares of JSC "Motor Sich" in the number of 1,038,996 shares, which constitutes 50% of the total number of issued shares, namely: Business House Helena A.G. – 359,727 (17.3113%), LLC "Motor-Interkoms" – 201,565 (9.69%), PrJSC "TC 'Olena'" – 193,220 (9.2984%), Granum Corporation – 192,665 (9.2717%), Enfields Trade & Capital Corp. – 64,733 (3.1152%), Waldo Trade Ltd. – 27,086 (1.3035%).

Thus, Viacheslav Oleksandrovych Bohuslaiev is reasonably suspected of misappropriation of property of another by abuse by an official of their official position, on an especially large scale, that is, of committing a criminal offense provided for by Part 5 of Art. 191 of the CC of Ukraine.

Throughout 2013, in connection with democratic processes taking place on the territory of Ukraine, representatives of the authorities of the RF and officials from among the leadership of the Armed Forces of the Russian Federation (hereinafter – AF of the RF), pre-trial investigation and trial regarding whom are carried out in other criminal proceedings, developed a criminal intent to commit illegal actions aimed at violating the sovereignty and territorial integrity of Ukraine, changing boundaries of its territory and state border in violation of order established by the Constitution of Ukraine.

Motives for the said intent were European integration course of development of Ukraine, preparation for signing of the Association Agreement between Ukraine and the European Union, the European Atomic Energy Community and their member states, which were perceived by representatives of authorities and AF of the RF as a direct threat to economic and geopolitical interests of the RF, which would contribute to loss of influence over political processes in Ukraine and deprive control over its economic activity, lead to deepening cooperation between Ukraine and North Atlantic Treaty Organization (NATO) in order to achieve criteria necessary to acquire membership in this organization and possible denunciation of agreements regarding temporary stationing of Black Sea Fleet of the RF on the territory of Ukraine – in AR Crimea and the city of Sevastopol.

Accomplices from among representatives of authorities and AF of the RF decided to achieve their criminal purpose by unleashing and waging an aggressive war against Ukraine

using subordinate units and servicemen of AF of the RF, including those stationed on the basis of international agreements on the territory of AR Crimea and the city of Sevastopol, as well as involving other persons in the execution of the criminal plan, including citizens of Ukraine and the RF, creating and financing illegal armed groups not provided for by law, and committing other crimes.

At the same time, they realized that such illegal actions would lead to violation of sovereignty and territorial integrity of Ukraine, unlawful change of boundaries of its territory and state border, causing significant material damage and other grave consequences, which they foresaw and sought to bring about.

In order to implement the said intent throughout 2013 on the territory of the RF, officials of the General Staff of the Armed Forces of the Russian Federation (hereinafter – GS of the AF of the RF), pursuant to orders and under direct leadership of representatives of authorities and officials of AF of the RF, pre-trial investigation and trial regarding whom are carried out in other criminal proceedings, developed a criminal plan, which envisaged achievement of military-political goals of the RF, which, in the opinion of accomplices, were directly linked to necessity of unlawful occupation and subsequent annexation of AR Crimea, the city of Sevastopol and south-eastern regions of Ukraine, and, alongside the application of political, diplomatic, economic, and information measures, use of protest potential of the population of south-eastern regions of Ukraine for organization of separatist referendums aimed at violating territorial integrity of Ukraine.

Taking into account that territory of AR Crimea and the city of Sevastopol had the greatest military-strategic importance for representatives of authorities and AF of the RF among other territories of Ukraine that were the object of their criminal encroachment, as well as the fact that units of Black Sea Fleet of the Russian Federation (hereinafter – BSF of the RF) were stationed on the said territory, this facilitated the most concealed use of regular troops of AF of the RF alongside other elements of hybrid warfare, and therefore accomplices of the criminal plan decided to begin waging hybrid war against Ukraine on the territory of the Crimean peninsula.

For effective implementation of the plan, it was decided to involve servicemen of AF of the RF, employees of other law enforcement agencies of the RF, representatives of authorities, other citizens of the RF and Ukraine. In addition, for this same purpose, representatives of authorities of the RF created and armed irregular illegal armed formations, armed gangs, and groups of mercenaries, which were commanded by officers of special services and AF of the RF.

Thus, beginning on 20 February 2014, for realization of the above-mentioned intent, with the purpose of blocking and capturing administrative buildings and key facilities of military and civilian infrastructure to ensure military occupation and subsequent annexation by the RF of territory of AR Crimea and city of Sevastopol, invasion by military, naval, and air transport of individual units of AF of the RF was carried out into the territory of the sovereign state of Ukraine, namely AR Crimea and city of Sevastopol.

Subsequently, servicemen of AF of the RF carried out the capture of buildings of central authorities of AR Crimea and established control over their

activity in order to ensure the adoption of decisions beneficial and necessary for the RF. In addition, blockades of motorways, capture of airports and transport enterprises, military units of AF of Ukraine, damage and destruction of military property having important defense significance for Ukraine were carried out.

Henceforth, contrary to international legal order, with disregard for state sovereignty and territorial integrity of Ukraine, beginning on 20 February 2014, representatives of authorities of the RF and officials of AF of the RF began armed invasion of regular troops of the RF into territory of Ukraine in order to change boundaries of territory and state border of Ukraine, in violation of order established by the Constitution of Ukraine, and military occupation of territory of AR Crimea and city of Sevastopol.

Also, actions were committed by representatives of authorities and AF of the RF to change boundaries of territory and state border of Ukraine in other territory of Ukraine.

Thus, by the said persons in March – April 2014, anti-government protest actions were organized and held, the most massive of which were in Luhansk, Donetsk, Kharkiv, Dnipropetrovsk, Zaporizhzhia, Mykolaiv, Kherson, and Odesa regions, with the aim of spreading pro-Russian slogans and carrying out forceful capture of administrative buildings of state authorities for subsequent organization of illegal referendums aimed at violating territorial integrity of Ukraine.

In order to guarantee the achievement of specified goals and create the appearance that an internal conflict was continuing in Ukraine, representatives of authorities and AF of the RF decided to create terrorist organizations on its territory, which, alongside the main function – carrying out terrorist activity, created the impression of activity within Donetsk and Luhansk regions of opposition forces that allegedly on behalf and with full support of local population defend their right to self-determination and independence, which directly contradicts the Constitution of Ukraine and norms of international law.

Thus, under direct leadership and control of persons not established at this time from among representatives of authorities and AF of the RF, on 07 April 2014 on the territory of Donetsk Region of Ukraine the terrorist organization "Donetsk People's Republic" (hereinafter – "DPR") was created, and on 27 April 2014 on the territory of Luhansk Region of Ukraine the terrorist organization "Luhansk People's Republic" (hereinafter – "LPR") was created, which included formed illegal armed groups that functioned until March 2022 until the higher political leadership of the RF carried out a series of measures for their accession to the RF with unlawful entry into its territorial boundaries, in particular, of Donetsk and Luhansk regions.

Control and coordination of activity of these terrorist organizations, as well as their financial and material support, including with weapons, ammunition, military equipment, was carried out by representatives of authorities and AF of the RF.

The main tasks of participants of the specified terrorist organizations were violent overthrow of constitutional order, seizure of state power in Ukraine, changing boundaries of territory and state border of Ukraine in violation of

order established by the Constitution of Ukraine, by using weapons, committing terrorist acts – carrying out explosions, arsons, and other actions that create danger to human life and health, threat of causing significant property damage and onset of other grave consequences.

Illegal armed formations of terrorist organizations "DPR" and "LPR", irregular armed formations of the RF, and servicemen of AF of the RF put up armed resistance to Ukraine in restoring territorial integrity and maintaining legal order, and participants of the political bloc of the specified terrorist organizations, with support and assistance of representatives of authorities of the RF under guise of state authorities, created occupation administrations of the Russian Federation that ensure subsequent occupation and exercise governance over specified territories at local level.

In view of the above, between states of the RF and Ukraine since 20 February 2014 an armed conflict of international character has been ongoing.

Facts of unleashing and waging aggressive war against Ukraine by the RF set forth above, conducting subversive activity, capturing state institutions, organizations, and military units since 27 February 2014 were widely covered by most mass media of Ukraine and foreign states, are generally known facts, in connection with which they were reliably known to V.O. Bohuslaiev and O.V. Bohuslaiev.

On the basis of Council of the European Union Decision No. 2014/512/CFSP dated 31.07.2014 concerning restrictive measures (sanctions) in view of Russia's actions destabilising the situation in Ukraine, direct or indirect sale, supply, transfer, or export of arms and related materiel of all types, including weapons and ammunition, military vehicles and equipment, paramilitary equipment, and spare parts therefor, to Russia by nationals of Member States or from territories of Member States, or using vessels or aircraft under their flag, is prohibited whether originating or not in their territories (Article 2).

By Decree of the President of Ukraine dated 15.03.2017 No. 62/2017 "On Decision of the National Security and Defense Council of Ukraine dated 15 March 2017 'On urgent additional measures to counteract hybrid threats to national security of Ukraine'", temporarily, until implementation of points 1 and 2 of the Minsk "Package of Measures" dated 12 February 2015, as well as until return of seized enterprises to functioning in accordance with legislation of Ukraine, movement of cargo across the contact line within Donetsk and Luhansk regions was terminated.

As of 2014, Joint-Stock Company "Motor Sich" (hereinafter – JSC "Motor Sich") is the executor of state defense order for repair and modernization of aviation equipment, and also has important significance for economy and defense capability of Ukraine. JSC "Motor Sich" conducts active export activity, has a number of representations abroad of Ukraine, including in countries of the European Union.

JSC "Motor Sich" takes a significant part in development, repair, modernization, and restoration of aviation equipment of Armed Forces of Ukraine. State defense order provided for procurement of aircraft engines TV3-117VMA-SBM1V series 4E and modernization of helicopters with conduct of repair taking into account technical condition: Mi-8TP to type Mi-8 MSB-V; Mi-2 to type Mi-2 MSB; Mi-8T (Mi-9) to type Mi-8 MSB-V.

JSC "Motor Sich" is a unique serial enterprise that produces more than 28 types of serial aviation engines, each of which is also unique. The enterprise has important significance for national economy of Ukraine, namely: a significant number of workers work at the enterprise; economic activity of the enterprise provides orders to dozens of enterprises of Ukraine in machine building, metallurgy, electronics, chemical industry, logistics sphere, air transportation, and others. Engines of JSC "Motor Sich" are used on helicopters of army aviation, as well as on aircraft of military transport aviation.

JSC "Motor Sich" as of February 2014 had a significant number of structural divisions that were closely linked by production processes. Among them was Snizhne Machine-Building Plant in the city of Snizhne, Donetsk Region, m. Snizhne.

V.O. Bohuslaiev since 1988 held managerial positions at enterprise "Motor Sich". By Order of the Minister of Aviation Industry No. 227/k dated 10.03.1988, he was appointed General Director of Zaporizhzhia Production Association "Motorobudivnyk" (in 1991 renamed into enterprise "Motor Sich").

In 1994, enterprise "Motor Sich" was transformed into Joint-Stock Company "Motor Sich". By Order of the Chairman of the State Property Fund No. 24-PAT dated 20.05.1994, V.O. Bohuslaiev was approved Chairman of the Board, General Director of JSC "Motor Sich".

According to protocol of general meeting of shareholders No. 5 dated 11.03.1999, Bohuslaiev V.O. was elected Chairman of the Board – General Director of Open Joint-Stock Company "Motor Sich". According to protocol of general meeting of shareholders No. 12 dated 16.03.2006, Bohuslaiev V.O. was elected Chairman of the Board of Directors – General Director of Open Joint-Stock Company "Motor Sich". According to protocol of meeting of Board of Directors No. 51 dated 28.04.2006, Bohuslaiev V.O. was dismissed in connection with transfer to elective office (from 25.05.2006 to 29.08.2019 Bohuslaiev V.O. was People's Deputy of Ukraine of 5th–8th convocations).

Notwithstanding the fact of being in elective office, V.O. Bohuslaiev preserved control over JSC "Motor Sich" and through participation, in particular, in interparliamentary commission on cooperation of Verkhovna Rada of Ukraine and Federal Assembly of the Russian Federation, group on interparliamentary relations with the Republic of India, United Arab Emirates, Russian Federation, Republic of Belarus, Republic of Kazakhstan, People's Republic of China, Democratic Socialist Republic of Sri Lanka, Republic of Indonesia, expanded sales markets and level of cooperation of the enterprise in international arena.

Shares of JSC "Motor Sich" as of 01.09.2014 were held by:

— 314,558 shares (15.1376%) – Viacheslav Oleksandrovych Bohuslaiev;
— 359,727 shares (17.3113%) – JSC Business House Helena A.G., owner of said company since 22.07.2014 Katran Ltd. (Republic of Cyprus, registration No. HE 332472). Beneficial owner – Ye.O. Vnukov;
— 201,565 shares (9.7%) – LLC "Motor-Interkoms", owner of said company Croftdale Investments Limited (Belize, registration number – 153,418), which since 30.03.2015 is owned by Calloway Finance Limited (Belize, registration No. 153,419). Beneficial owner – O.V. Bohuslaiev;
— 193,220 shares (9.2984%) – PrJSC "TC 'Olena'", owner Montagne Ltd. (state affiliation – Belize, registration number – 152,267), which since 30.03.2015 is owned by Longwizard Corp (Belize, registration No. 152,228). Beneficial owner – A.P. Kononenko;
— 192,665 shares (9.2717%) – Granum Corporation (Republic of Panama, registration number – 538069), which since 22.07.2014 is owned by Laterson Management Group Ltd. (Seychelles, registration No. 146975). Beneficial owner – L.V. Sushchenko;
— 64,733 shares (3.1152%) – Enfields Trade & Capital Corp. (Republic of Panama, registration number – 542042), which since 22.07.2014 is owned by Stamio Investments Ltd. (Republic of Cyprus, registration No. HE 332799). Beneficial owner – O.V. Bohuslaiev;
— 27,086 shares (1.3035%) – Waldo Trade Ltd. (British Virgin Islands, registration number – 1535383), which since 13.06.2014 was owned by Taladin Limited (Belize, registration No. 145,704). Beneficial owner – L.S. Trufanova;
— 16,425 shares (0.7904%) – Tabernus Corp. (Republic of Panama, registration No. 792582) since 17.02.2016 owner – Addison Business Ltd. (British Virgin Islands). Beneficial owner – O.V. Bohuslaiev, L.V. Sushchenko (28.02.1958 y.o.b., native of Zaporizhzhia).

Until 2014, cooperation of JSC "Motor Sich" with enterprises of the military-industrial complex of the Russian Federation was carried out within the framework of industrial and scientific-technical cooperation of defense industry enterprises. Main consumers of aviation engines were Kazan and Rostov helicopter plants, as well as aircraft engine-building enterprises of the RF. Supply of goods was carried out through Russian enterprises controlled by JSC "Motor Sich", in particular on the basis of permits of State Export Control Service of Ukraine.

In the structure of JSC "Motor Sich" there was a number of separate divisions that manufactured components for production of aviation engines by the main enterprise, among them was Snizhne Machine-Building Plant.

According to the Charter of JSC "Motor Sich", Snizhne Machine-Building Plant (hereinafter in text – SD "SMZ") is part of JSC "MOTOR SICH" as a separate division without the rights of a legal entity, with the right to open current or settlement accounts and acts on the basis of Regulation.

Under the Regulation approved on 21.07.2011 by Supervisory Board of JSC "Motor Sich", subject of activity of SD "SMZ" is preparation and organization of experimental and serial production of parts and assembly units for aviation engines, aviation equipment. Development and support of technological documents for parts and assembly units for aviation engines, aviation equipment. Upon agreement with management of the Company, carrying out certain types of foreign economic activity with material and technical support of production, export, import, industrial, scientific and technical products, intellectual property, consumer goods and other products. Ensuring service and warranty maintenance of delivered products. The Plant enters into economic agreements (contracts) on behalf of the Company, the list and types of which are agreed with Chairman of the Board of Directors of the Company, and bears responsibility for them with property assigned to the enterprise.

By types of activity, SD "SMZ", among other things, specializes in manufacture of other finished metal products, using production capacities of which, as of 2014, a significant number of designations of parts for various purposes was manufactured, among which were guide and nozzle blades of compressors and turbines of aviation engines.

V.O. Bohuslaiev, from February 2014, actually exercising management of JSC "Motor Sich", economic activity and separate divisions in the form of strategic and current management, planning, personnel management, production, marketing, finance, investment, being in an unestablished location organized conduct of economic activity of SD "SMZ" and sale of products in the form of blades for aviation engines TV3-117, AI-20, AI-24, AI-25/Tl/TLK, AI-322, D36, D136, D336, MS-400.

Pursuant to Directive of Cabinet of Ministers of Ukraine dated 7 November 2014 No. 1085-r "On approval of list of settlements on territory of which state authorities temporarily do not exercise their powers, and list of settlements located on contact line", the city of Snizhne of Horlivka District of Donetsk Region was assigned to the list of settlements on territory of which state authorities temporarily do not exercise their powers. In fact, the city of Snizhne has been under occupation of Russian troops since April 2014.

V.O. Bohuslaiev, reliably knowing that SD "SMZ" is located on territory of Ukraine temporarily occupied by the Russian Federation in Donetsk Region where activity of state authorities of Ukraine is temporarily not exercised, by virtue of which, as well as norms of current legislation of Ukraine, continuation of economic activity of the latter is impossible. Knowing that functions of occupation administration of the Russian Federation on specified occupied territory of Ukraine are carried out by terrorist organization "dpr", acting intentionally, with mercenary motives, not later than September 2014 (exact date not established by body of pre-trial investigation at given time), disregarding restrictive measures applied by Ukraine and

Council of European Union, ensured financing of activity of terrorist organization "dpr" in the form of supplying raw materials to occupied territory and obtaining products manufactured under his full and administrative control as a result of economic activity of SD "SMZ".

Thus, as a result of cooperation in period of 2014-2019 of JSC "Motor Sich" with terrorist organization "DPR" and the RF, property rights to JSC "Motor Sich" become assets related to terrorism and its financing.

Bohuslaiev V.O., understanding that start of aggressive war closes established sales markets in the RF for products manufactured by JSC "Motor Sich". He will not be able to ensure long-term illegal use in production processes of JSC "Motor Sich" of products manufactured by SD "SMZ" on territory of Donetsk Region temporarily occupied by the RF and controlled by terrorist organization "DPR". Not later than 2014, exact time not established by pre-trial investigation, Bohuslaiev V.O. became aware that shares of JSC "Motor Sich" unlawfully obtained by him during unlawful privatization acquire status of an asset related to terrorism or its financing. Fearing disclosure by law enforcement agencies of Ukraine of criminal activity of enterprise JSC "Motor Sich" in facilitating activity of terrorist organization "DPR", resulting in blocking or seizure of asset belonging to him, Bohuslaiev V.O. decided to effect sale of such asset with subsequent laundering (legalization) of funds from sale of rights to property obtained by him by criminal means, through misappropriation by means of unlawful privatization with purchase of shares at undervalued prices using his official position.

Legalization of funds from unlawful sale of shares of JSC "Motor Sich" envisaged subsequent commission of a series of transactions in foreign jurisdictions without knowledge of Ukrainian government, in violation of concentration procedure with conduct of financial transactions with concealment and disguise of unlawful origin of such funds, sources of their origin, location, transfer, change of their form into other currencies to give them appearance of legality during relevant checks of origin of assets.

Using his name and influence of People's Deputy of Ukraine without relinquishing operational control and accountability of officials of JSC "Motor Sich", Bohuslaiev V.O., being actual owner of controlling block of shares of the enterprise in amount of 65% and concealing this from Ukrainian government, in 2014 entered into negotiations with citizens of People's Republic of China regarding transfer to them for financial consideration of rights to manage activity of JSC "Motor Sich".

At the same time, citizens of People's Republic of China as of 2014 understood that invasion of the RF into territory of Ukraine, application of national and European sanctions closed sales market of products of JSC "Motor Sich" in the RF, and facts of unlawful cooperation with terrorist organization "DPR" to maintain production cycle bear temporary character, which significantly affects price of, albeit unlawful, but unique production asset. Citizens of People's

Republic of China agreed to accept ownership and management of JSC "Motor Sich" on terms proposed by V.O. Bohuslaiev.

Bohuslaiev V.O., realizing that in a lawful manner, that is, in accordance with Ukrainian national legislation, he will not be able to sell property right to JSC "Motor Sich", which belonged to him personally (15%) and indirectly through legal entities controlled through mediation of his son (49.7%), involved Oleksandr Viacheslavovych Bohuslaiev to ensure sale of unlawfully acquired asset related to financing of terrorism, and concealment of source of funds received from such sale, by disguising financial transactions and moving them into foreign jurisdictions.

Bohuslaiev O.V., understanding unlawful nature of activity of JSC "Motor Sich" on financing and other assistance to terrorist organization "DPR" on territory of Donetsk Region of Ukraine temporarily occupied by the RF, and also in violation of existing prohibitions gave his consent to commission of legalization (laundering) of property obtained by criminal means.

According to assigned role, Bohuslaiev O.V. was to ensure disguise of sources of origin of funds by transferring them to bank accounts linked to him and his father – Bohuslaiev V.O. in foreign jurisdictions, and also create documentary semblance of sale of shares of JSC "Motor Sich". Bohuslaiev O.V. understood that according to current legislation of Ukraine and under conditions of war with the RF, it is impossible to carry out lawful unhindered sale of rights to property of JSC "Motor Sich". In order to implement their criminal intentions, Bohuslaiev V.O. and Bohuslaiev O.V. involved other persons, not established at present in course of pre-trial investigation, who engaged in documentary formalization and submission of documents for signature, conducted technical negotiations with deal participants, organized communication with banking institutions.

Due to such circumstances, Bohuslaiev V.O. and Bohuslaiev O.V., acting secretly, jointly, and intentionally, did not notify Government of Ukraine of their criminal intentions, as well as of all circumstances of sale of shares of JSC "Motor Sich" to citizens of the PRC.

Bohuslaiev V.O., reliably understanding that he is actual owner of 65% of shares of JSC "Motor Sich", which is controlling block of shares of the enterprise and sale of which to one buyer requires permission of Ukrainian government represented by Antimonopoly Committee of Ukraine for concentration, with the aim of disguising unlawful transactions induced representatives of the PRC to register a number of legal entities for the purpose of further avoiding concentration of shares.

Thus, with the aim of selling shares of JSC "Motor Sich", without permit for concentration provided for by law, in addition to Bohuslaiev V.O. himself (holder of 15%), following offshore companies controlled by him and Bohuslaiev O.V. (holding 49.7%) participated:

1. Katran Ltd. (Republic of Cyprus, registration No. HE 332472). Owner – Davsone Limited (Republic of Cyprus, registration No. HE 267042). Beneficial owner – Ye.O. Vnukov (01.03.1982 y.o.b.), who is brother of wife

of O.V. Bohuslaiev (maiden name – Vnukova). General power of attorney for commission of actions dated 20.05.2014 issued to name of O.V. Bohuslaiev;
2. Calloway Finance Limited (Belize, registration No. 153,419). Owner – Carlos Alberto Weand Ortiz. Beneficial owner – O.V. Bohuslaiev;
3. Longwizard Corp (Belize, registration No. 152,228). Owner according to register – Modena Corporation (Belize, registration No. 87,811). Beneficial owner – A.P. Kononenko (18.10.1982 y.o.b.) is a close friend of O.V. Bohuslaiev, and his father Petro Kononenko is business partner of Bohuslaiev family, headed representative office of JSC "Motor Sich" in UAE, in Ukraine has status of accused under Art. 258-3 of CC of Ukraine (terrorism);
4. Laterson Management Group Ltd. (Seychelles, registration No. 146975). Owner according to register – Tritan Ltd (Seychelles, registration No. 121818). Beneficial owner – L.V. Sushchenko (28.02.1958 y.o.b.) confidant of Bohuslaiev family;
5. Stamio Investments Ltd. (Republic of Cyprus, registration No. HE 332799). Owner – Addison Business Ltd (British Virgin Islands). Beneficial owner – O.V. Bohuslaiev;
6. Taladin Limited (Belize, registration No. 145,704). Owner according to register – Walford Corporation (Seychelles, registration No. 121717). Beneficial owner – L.S. Trufanova (26.03.1954 y.o.b.) sister of V.O. Bohuslaiev. General power of attorney dated 30.05.2014 to Bohuslaiev O.V.;

In turn, on part of citizens of People's Republic of China, for entering into agreements regarding purchase of 49.7% of shares of JSC "Motor Sich", following companies were represented:
1. Reckoner Investments Holdings Limited (Republic of Cyprus, registration No. HE 342484);
2. Argio Investment Holdings Limited (Republic of Cyprus, registration No. HE 342329);
3. Skyrizon Aircraft Holdings Limited (British Virgin Islands, registration No. 1776352);

Bohuslaiev O.V., in execution of joint intent with Bohuslaiev V.O. to legalize asset related to facilitation and financing of terrorist activity in period of 2014-2016, ensured documentary formalization of agreements with aim of conducting financial transactions to disguise and move 650 million US dollars to accounts in banks in foreign jurisdictions.

On 19.12.2014, "Escrow Agreement" was signed between Skyrizon Aircraft Holdings Limited as Buyer represented by director Wang Jing, Laterson Management Group Ltd as Seller represented by nominal representative by power of attorney L.V. Sushchenko, and UBI Banca International S.A. as Escrow Agent.

Under terms of agreement, escrow amount is 25 million US dollars, which are deposited by Buyer into relevant escrow account, and which are subsequently transferred to account of Seller only after receipt of notification regarding performance of all terms of contractual relationship between Buyer and Seller. At UBI Banca International S.A.

special escrow account No. 986949 was opened, account holder – SKYRIZON/LATERSON ESCROW ACCOUNT, IBAN: LU68 3010 9869 49US D001, to which on 29.12.2014 from company Skyrizon Aircraft Holdings Limited funds in amount of 25 million US dollars were received.

On 29.05.2015, between Sellers – Katran Ltd., Calloway Finance Limited, Longwizard Corp, Laterson Management Group Ltd., Stamio Investments Ltd., Taladin Limited and Buyers – Reckoner Investments Holdings Limited, Argio Investment Holdings Limited, Skyrizon Aircraft Holdings Limited, "Framework Agreement" was signed for total amount of 500 million US dollars, including 25 million US dollars paid on 29.12.2014 to escrow account, according to terms of Escrow Agreement dated 19.12.2014.

According to terms of Framework Agreement dated 29.05.2015, Buyers acquired ownership of corporate rights to non-resident companies, which in turn directly held 49.97% of shares of JSC "Motor Sich".

Bohuslaiev V.O., acting by prior conspiracy with Bohuslaiev O.V., in period from June to December 2015, understanding future counteraction to their unlawful actions on part of Ukrainian government, in particular Antimonopoly Committee of Ukraine, concealing unlawful nature of their actions regarding alienation of shares of JSC "Motor Sich", persuaded citizens of PRC to change preliminary agreement. To disguise share sale transaction, subject of agreements becomes corporate rights of companies indirectly holding shares of JSC "Motor Sich".

On 21.12.2015, between specified above participants, new edition of "Framework Agreement" dated 29.05.2015 was concluded, under terms of which total value of agreement is 607 million US dollars, of which 25 million US dollars was already transferred under terms of Escrow Agreement dated 19.12.2014, and balance in amount of 582 million US dollars will be transferred to new escrow account according to terms of new escrow agreement. Sellers carry out sale of 100% of corporate rights to non-resident companies, which in their turn directly or indirectly hold 49.97% of shares of JSC "Motor Sich".

In execution of said "Framework Agreement", following transactions are carried out:
1) Katran Ltd. carries out sale of 100% of statutory capital of company Business House Helena A.G. to company Reckoner Investments Holdings Limited for 211.52 million US dollars, as a result of which Reckoner Investments Holdings Limited acquires ownership of 17.31% of shares of JSC "Motor Sich";
2) Calloway Finance Limited carries out sale of 100% of statutory capital of company Croftdale Investments Limited to company Argio Investment Holdings Limited for 118.40 million US dollars, as a result of which Argio Investment Holdings Limited acquires ownership of 9.69% of shares of JSC "Motor Sich". In turn, company Croftdale Investments Limited owns 100% of statutory capital of LLC "Motor-Interkoms" (code 32372401), which is direct owner of shares of JSC "Motor Sich";
3) Longwizard Corp carries out sale of 100% of statutory capital of company Montagne Ltd. to company Argio Investment Holdings Limited for 114.40 million US dollars, as a result of which Argio Investment Holdings Limited acquires ownership of 9.29% of shares of JSC "Motor Sich". In turn, company Montagne Ltd. owns 100% of statutory

capital of PrJSC "Trading House 'Olena'" (code 31051118), which is direct owner of shares of JSC "Motor Sich";
4) Laterson Management Group Ltd. carries out sale of 100% of statutory capital of company Granum Corporation to company Skyrizon Aircraft Holdings Limited for 82.98 million US dollars, as a result of which Skyrizon Aircraft Holdings Limited acquires ownership of 9.27% of shares of JSC "Motor Sich";
5) Stamio Investments Ltd. carries out sale of 100% of statutory capital of company Enfields Trade & Capital Corp. to company Reckoner Investments Holdings Limited for 38.49 million US dollars, as a result of which Reckoner Investments Holdings Limited acquires ownership of 3.11% of shares of JSC "Motor Sich";
6) Taladin Limited carries out sale of 100% of statutory capital of company Waldo Trade Ltd. to company Reckoner Investments Holdings Limited for 16.21 million US dollars, as a result of which Reckoner Investments Holdings Limited acquires ownership of 1.3% of shares of JSC "Motor Sich";

On 21.12.2015, Escrow Agreement was signed by Sellers – Katran Ltd., Calloway Finance Limited, Longwizard Corp, Laterson Management Group Ltd., Stamio Investments Ltd., Taladin Limited and Buyers – Reckoner Investments Holdings Limited, Argio Investment Holdings Limited, Skyrizon Aircraft Holdings Limited, and UBI Banca International S.A. as Escrow Agent.

Authorized representative with right to sign documents regarding sale of 49.97% of shares of JSC "Motor Sich" on behalf of all 6 sellers Katran Ltd., Calloway Finance Limited, Longwizard Corp, Laterson Management Group Ltd., Stamio Investments Ltd., Taladin Limited, was Oleksandr Viacheslavovych Bohuslaiev.

At the same time, Laterson Management Group Ltd. owns 100% of statutory capital of Granum Corporation since 22.07.2014, Katran Ltd. owns 100% of statutory capital of Business House Helena A.G. since 22.07.2014, Stamio Investments Ltd. owns 100% of statutory capital of Enfields Trade & Capital Corp. since 22.07.2014, Taladin Limited owns 100% of statutory capital of Waldo Trade Ltd. since 13.06.2014, Longwizard Corp owns 100% of statutory capital of Montagne Ltd. since 30.03.2015, Calloway Finance Limited owns 100% of statutory capital of Croftdale Investments Ltd. since 30.03.2015.

According to specified agreement, at UBI Banca International S.A. special escrow account No. 987141 was opened, account holder – Project Zoom Escrow Account, IBAN EUR: LU09 3010 9871 41EU R001, IBAN USD: LU61 3010 19871 41US D001, to which on 29.12.2015 funds in amount of 582 million US dollars were received.

Alongside this, at UBI Banca International S.A., by non-resident companies whose beneficial owner is O.V. Bohuslaiev, in period from 13.01.2015 to 14.04.2016 bank accounts were opened, namely:
Laterson Management Group Ltd. account No. 987012;
Katran Ltd. account No. 987113, Stamio Investments Ltd. account No. 987116;
Taladin Limited account No. 987114;
Calloway Finance Limited account No. 987115;
Longwizard Corp account No. 987112.

Performance of terms of Framework Agreements by Bohuslaiev O.V. took place in period from 22 to 26 February 2016, after actual re-registration of corporate rights of six non-resident companies that indirectly held 49.97% of shares of JSC "Motor Sich" to three non-resident companies controlled by group from PRC.

After actual performance of terms of Framework Agreements on sale of corporate rights of non-resident companies, to above-mentioned bank accounts in period from 22.02.2016 to 01.06.2016 by escrow agent UBI Banca International S.A. from special escrow accounts No. 986949 and No. 987141 funds were transferred in amount of 607 million US dollars, to accounts of companies controlled by Bohuslaiev O.V.:
— from account No. 986949 to account of Laterson Management Group Ltd. No. 987012 – 25 million US dollars;
— from account No. 987141 to account of Laterson Management Group Ltd. No. 987012 – 82.98 million US dollars;
— from account No. 987141 to account of Katran Ltd. No. 987113 – 211.52 million US dollars;
— from account No. 987141 to account of Stamio Investments Ltd. No. 987116 – 38.49 million US dollars;
— from account No. 987141 to account of Taladin Limited No. 987114 – 16.21 million US dollars;
— from account No. 987141 to account of Calloway Finance Limited No. 987115 – 118.40 million US dollars;
— from account No. 987141 to account of Longwizard Corp No. 987112 – 114.40 million US dollars.

By instruction of Bohuslaiev O.V., received funds in amount of 607 million US dollars, with aim of concealing their source and conversion, were converted into various currencies and systematically placed in short-term deposits, for the purpose of converting these funds, giving them appearance of legality during relevant checks of origin of assets, receiving profit from accrual of interest.

In period from 11.04.2016 to 29.06.2018, from own accounts of 5 offshore non-resident companies opened at UBI Banca International S.A. (Luxembourg), by instructions of Bohuslaiev O.V., to own accounts opened at banking institutions of Principality of Monaco – UBP and Julius Bär, funds were transferred in amount of 460.16 million US dollars, 15.4 million euros, 11.7 million pounds sterling.

Thus, Taladin Limited from own accounts opened at UBI Banca International S.A. (Luxembourg), which in January 2018 was liquidated, and accounts transferred to EFG Bank (Luxembourg), to account No. 3042421 (opened – 20.06.2018, closed – 25.07.2018) at banking institution UBP (Principality of Monaco), received funds:
— 27.06.2018 from account No. LU563430004750031216 – 62,194.33 US dollars;
— 27.06.2018 from account No. LU563430004750031313 – 10,705.94 euros;
— 29.06.2018 from account No. LU503430004750031518 – 11,669,963.74 pounds sterling.

Calloway Finance Limited from own accounts opened at UBI Banca International S.A. (Luxembourg) to account No. 3040771 (opened – 29.11.2017, closed – 25.07.2018) at banking institution UBP (Principality of Monaco), 18.12.2017 received funds from account No. LU 673010 987115 USD001 in amount of 121,028,194.45 US dollars.

Katran Ltd. from own accounts opened at UBI Banca International S.A. (Luxembourg) to account No. 3038178 (opened – 16.03.2017, closed – 14.08.2018) at banking institution UBP (Principality of Monaco), received funds in amount of 206,728,884 US dollars and 6,399,900 euros:
— 21.03.2017 from account No. LU603010 987113 USD001 – 10,999,962 US dollars;
— 29.06.2017 from account No. LU603010 987113 USD001 – 499,962 US dollars;
— 10.10.2017 from account No. LU603010 987113 USD001 – 195,228,960 US dollars;
— 27.04.2017 from account No. LU 083010 987113 EUR001 – 5,999,950 euros;
— 18.05.2017 from account No. LU 083010 987113 EUR001 – 399,950 euros.

Laterson Management Group Ltd. from own accounts opened at UBI Banca International S.A. (Luxembourg) to account No. 3034379 (opened – 30.12.2015, closed – 28.07.2021) at banking institution UBP (Principality of Monaco), 18.04.2016 received funds in amount of 4,999,962 US dollars, from account No. LU463010 987012 USD001.

Laterson Management Group Ltd. from own accounts of Laterson Management Group Ltd., opened at UBI Banca International S.A. (Luxembourg) to account No. 5188474 (opened – 21.04.2015, closed – 20.07.2018) at banking institution Julius Bär (Principality of Monaco), received funds in amount of 14,999,810 US dollars and 8,999,700 euros:
— 11.04.2016 from account No. 987012 – 2,999,962 US dollars;
— 31.05.2016 from account No. 987012 – 2,999,962 US dollars;
— 06.07.2016 from account No. 987012 – 2,999,962 US dollars;
— 29.07.2016 from account No. 987012 – 2,999,962 US dollars;
— 23.08.2016 from account No. 987012 – 2,999,962 US dollars;
— 21.09.2016 from account No. 987012 – 2,999,900 US dollars;
— 16.01.2017 from account No. 987012 – 2,999,900 US dollars;
— 27.04.2017 from account No. 987012 – 2,999,900 US dollars.

Longwizard Corp from own accounts opened at UBI Banca International S.A. (Luxembourg) to account No. 5185358 (opened – 29.12.2017, closed – 05.07.2018) at banking institution Julius Bär (Principality of Monaco), received funds in amount of 112,343,886 US dollars:
— 04.04.2017 from account No. LU083010987112USD001 – 2,999,962 US dollars;
— 10.08.2017 from account No. LU083010987112USD001 – 2,999,962 US dollars;
— 18.09.2017 from account No. LU083010987112USD001 – 106,343,962 US dollars.

For the sale of 15% of shares of JSC "Motor Sich", Bohuslaiev V.O. personally acted as seller. On the part of citizens of the People's Republic of China as buyers for

conclusion of agreements were represented: Likatron Enterprises Limited (Republic of Cyprus, registration number – HE 340841,) – 10%; citizen of PRC Wang Xinlei – 5%.

On 21.12.2015, "Framework Agreement" was signed between Seller in person of Bohuslaiev V.O. and Buyer in person of Likatron Enterprises Limited, Likatron Enterprises Limited under terms of which the latter acquires ownership of 311,699 (15%) shares of JSC "Motor Sich". Remuneration under above-mentioned framework agreement amounts to 43 million US dollars and is transferred by Buyer to relevant escrow account after signing of new escrow agreement.

Escrow Agreement dated 21.12.2015, signed by Seller – Bohuslaiev V.O., Buyer – Likatron Enterprises Limited and UBI Banca International S.A. as Escrow Agent where special escrow account No. 987220 was opened, account holder – Project Zoom II Escrow Account, to which on 29.12.2015 funds in amount of 43 million US dollars were received.

In execution of "Framework Agreement", contract of purchase and sale of shares of JSC "Motor Sich" No. 202/BV dated 07.07.2016 was drawn up, signed by Seller Bohuslaiev V.O. and Buyer – Wang Xinlei. In accordance with terms of contract, Bohuslaiev V.O. carried out sale of 104,107 shares (5.01%) of JSC "Motor Sich" to Wang Xinlei, for amount of 14,362,000 US dollars.

According to Memorial Order No. 22448 dated 02.08.2016, by Bohuslaiev V.O. to account No. 26203001000326 opened at JSC "Motor-Bank" (bank code – 313009), 02.08.2016 funds were received in equivalent of 14,362,000 US dollars (355,940,986.05 UAH) from Wang Xinlei. Payment purpose is: "SWF 16/08/01 agr. No. 202/BV between Bohuslaiev and WANG XINLEI dated 07.07.16 msg No. 56772 dated 01.08.16.PROJECT ZOOM II E A UBI BANCA INTERNATIONAL SA ON BEHALF WANG XINLEI".

In execution of "Framework Agreement", contract of purchase and sale of shares of PJSC "Motor Sich" No. 203/BV dated 07.07.2016 was drawn up, signed by Seller – Bohuslaiev V.O., Buyer – Likatron Enterprises Limited. In accordance with terms of contract, Bohuslaiev V.O. carried out sale of 207,592 shares (9.99%) of JSC "Motor Sich" to company Likatron Enterprises Limited, for amount of 28,638,000 US dollars.

According to Memorial Order No. 22450 dated 02.08.2016, by Bohuslaiev V.O. to account No. 26203001000326 opened at JSC "Motor-Bank" (bank code – 313009), 02.08.2016 funds were received in equivalent of 28,638,000 US dollars (709,750,588.95 UAH) from Likatron Enterprises Limited. Payment purpose is: "SWF 16/08/01 agr. No. 203/BV between Bohuslaiev and LIKATRON ENTERPRISES LIMITED dated 07.07.2016 msg No. 56774 dated 01.08.16. PROJECT ZOOM II E A UBI BANCA ENTERPRISES LTD".

Transfer of funds to accounts of Bohuslaiev V.O. as well as to accounts of offshore companies controlled by Bohuslaiev O.V. from all special escrow accounts at UBI Banca International S.A. had synchronous character after commission of re-registration of corporate rights and confirmation thereof by citizens of PRC.

Thus, Bohuslaiev V.O. and Bohuslaiev O.V. in an unestablished location, by prior conspiracy by a group of persons, carried out unlawful concealment of sources of origin of 650 million US dollars, disguised as documentary appearance of lawful sale of shares of enterprise JSC "Motor Sich", which Bohuslaiev V.O. previously unlawfully and illegally misappropriated, which facilitated terrorist activity, which according to official exchange rate of National Bank of Ukraine as of 02.08.2016 amounted to 16,135,080,000 hryvnias, and therefore exceeds eighteen thousand tax-free minimum incomes of citizens and is an especially large scale of legalization (laundering) of proceeds obtained by criminal means.

Under these circumstances, V.O. Bohuslaiev is reasonably suspected of committing, by prior conspiracy by a group of persons, actions aimed at concealing and disguising illicit origin of funds obtained as a result of commission of a socially dangerous illegal act preceding legalization (laundering) of proceeds, transfer, change of their form (conversion), as well as use of funds or other property obtained as a result of commission of a socially dangerous illegal act preceding legalization (laundering) of proceeds on an especially large scale, that is, a criminal offense provided for by Part 3 of Art. 209 of CC of Ukraine. (Article 209 in edition of Law No. 430-IV dated 16.01.2003; with amendments made pursuant to Laws No. 2258-VI dated 18.05.2010, No. 4025-VI dated 15.11.2011, No. 1702-VII dated 14.10.2014, No. 770-VIII dated 10.11.2015).

Senior Investigator for OVS of 1st Department
of 1st Directorate of Pre-Trial Investigation
of Main Investigation Directorate
of Security Service of Ukraine
Lieutenant Colonel of Justice  **Denys ROMASHKIN**

«A G R E E D»
Head of First Department of Directorate
for Organization and Procedural Guidance
of Pre-Trial Investigation and Maintenance
of Public Prosecution in Criminal Proceedings
of Security Bodies
of Department for Supervision over Compliance
with Laws by Security Bodies
of Office of Prosecutor General  **Denys DOLBESHCHENKOV**

Pursuant to provisions of Arts. 42, 276, 277 of CPC of Ukraine, suspect V.O. Bohuslaiev was explained his procedural rights and duties, namely:

1. A suspect is a person who, in accordance with procedure provided for by Articles 276–279 of this Code, has been notified of suspicion, a person who is detained on suspicion of...